ELECTRONICALLY FILED
Superior Court of California
County of Sacramento
05/18/2026
By: T. Mercadel Deputy

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SACRAMENTO

BRENDAN NGEHSI NEWANFORBI, Petitioner, v. **DIANA CANDELARIA, in her official capacity as Driver Safety Hearing Officer of the California Department of Motor Vehicles; the CALIFORNIA DEPARTMENT OF MOTOR VEHICLES; and DOES 1 through 10, inclusive,** Respondents.	Case No. 26VVM00135 **VERIFIED PETITION FOR WRIT OF ADMINISTRATIVE MANDATE** (Code Civ. Proc. §§ 1094.5, 473(d); Veh. Code § 13559) APS Case No. 34739340 DL/ID No. F7953179 *[Trial by Court — No Jury]* *[Verified Petition]*

INTRODUCTION

1. Petitioner BRENDAN NGEHSI NEWANFORBI ("Petitioner") respectfully petitions this Court, pursuant to Code of Civil Procedure section 1094.5 and Vehicle Code section 13559, for a peremptory writ of administrative mandate commanding Respondents DIANA CANDELARIA, in her official capacity as Driver Safety Hearing Officer of the California Department of Motor Vehicles ("DMV"), and the CALIFORNIA DEPARTMENT OF MOTOR VEHICLES, to set aside in its entirety the Notification of Findings and Decision dated February 11, 2025, in APS Case No. 34739340 (the "Decision"), and to vacate every administrative consequence flowing therefrom.

2. The Decision is, on its face and on the administrative record, a void exercise of adjudicative power. The Administrative Per Se ("APS") refusal-suspension scheme of Vehicle Code section 13353(a)(1) requires, as a jurisdictional and statutory predicate, that the driver have been *lawfully arrested* for a violation of section 23140, 23152, or 23154. By the date of the January 24, 2025 hearing, that predicate had ceased to exist as a matter of California law. On November 5, 2024, the California Highway Patrol, Dublin Area ("CHP"), issued a formal Detention Certificate in CHP Case No. RJ68845, certifying that Petitioner's November 1, 2024 taking into custody "was a detention only, not an arrest," and releasing him under Penal Code section 849(b)(1) for "insufficient grounds for making a criminal complaint." By operation of Penal Code sections 849(c) and 849.5, the encounter "shall not be deemed an arrest, but a detention only." The Alameda County District Attorney declined to file any accusatory pleading.

3. Notwithstanding this statutorily dispositive event, Respondent Candelaria convened the APS hearing, sustained the suspension, and issued a Decision that **does not mention the Detention Certificate anywhere in its text,** dismissed Petitioner's controlling-authority arguments as "unpersuasive" without analysis, mischaracterized the record by declaring that "no evidence was presented to the contrary" when the contrary evidence had in fact been presented in writing and at the hearing, and treated the arresting officer's sworn DS-367 statement as irrebuttable notwithstanding the contemporaneous CHP dashcam audio-video recording establishing that the sworn "strong distinct odor of an alcoholic beverage" claim was objectively false in a material respect.

4. The Decision must be set aside on multiple, independently sufficient grounds. **First,** the APS refusal suspension lacks its statutory "lawful arrest" predicate under Vehicle Code section 13353(a)(1), Mercer v. DMV, 53 Cal.3d 753 (1991), and Music v. DMV, 221 Cal.App.3d 841 (1990). **Second,** Respondent Candelaria failed to proceed in the manner required by law by refusing to address or analyze the controlling Detention Certificate or the dispositive Penal Code provisions. **Third,** the findings are not supported by the weight of the evidence in light of the

dashcam recording. **Fourth,** the Decision was rendered within a dual-role hearing framework already declared structurally unconstitutional by the California Court of Appeal in California DUI Lawyers Ass'n v. DMV, 77 Cal.App.5th 517 (2022), Knudsen v. DMV, 101 Cal.App.5th 186 (2024), and Clarke v. Gordon (Cal. Ct. App., Sept. 12, 2024, No. G062856) 2024 WL 4163081—the last of which named the Director of the DMV personally as respondent.

5. Petitioner seeks a peremptory writ commanding Respondents to (a) set aside the Decision in its entirety; (b) vacate the one-year Class A Commercial Driver's License suspension imposed February 20, 2025 through February 19, 2026; (c) vacate the $125.00 reissue fee imposed under Vehicle Code sections 14904 and 14906; (d) vacate the three-year SR-22 financial-responsibility requirement imposed under Vehicle Code section 16430; (e) expunge the suspension and all related notations from Petitioner's driving record; (f) refund all fees paid in connection with the void Decision; and (g) restore Petitioner's full commercial driving privileges nunc pro tunc to February 20, 2025.

PARTIES

6. Petitioner BRENDAN NGEHSI NEWANFORBI is a natural person residing in Stockton, San Joaquin County, California. At all relevant times, Petitioner held a Class A California Commercial Driver's License (License No. F7953179), with doubles/triples and tank vehicle endorsements, and was employed as a professional commercial truck driver.

7. Respondent DIANA CANDELARIA is, and at all relevant times was, a Driver Safety Hearing Officer employed by the DMV within its Legal Affairs Division, Driver Safety Branch, operating from 1455 Frazee Road, Suite 400, San Diego, California 92108. Respondent Candelaria presided over Petitioner's APS hearing on January 24, 2025, issued the Decision dated February 11, 2025, and personally executed the Certificate of Service of that Decision. She is sued in her official capacity for purposes of administrative mandate relief.

8. Respondent CALIFORNIA DEPARTMENT OF MOTOR VEHICLES is the state agency responsible for administering Vehicle Code sections 13353, 13353.2, 14904, 14906, and 16430, and for conducting Administrative Per Se hearings under those provisions. The DMV is the agency whose final administrative determination is the subject of this Petition.

JURISDICTION AND VENUE

9. This Court has subject-matter jurisdiction under Article VI, section 10 of the California Constitution; Code of Civil Procedure sections 1085 and 1094.5; and Vehicle Code section 13559. The Decision is a final administrative determination by a state agency. Petitioner has no plain, speedy, or adequate remedy at law.

10. Venue is proper in this Court on multiple, independently sufficient grounds. **First,** under Code of Civil Procedure section 401(1) and the general rule applicable to actions against state agencies, the California Department of Motor Vehicles maintains its principal executive office in the County of Sacramento (2415 First Avenue, Sacramento, California 95818), and may be sued in that county. **Second,** under Code of Civil Procedure section 393(b), venue is proper in the county where the cause, or some part of it, arose. A substantial part of the operative administrative acts giving rise to this Petition occurred in Sacramento County: the DMV's Sacramento Driver Safety Office, located at 4700 Broadway, 2nd Floor, Sacramento, California 95820, issued every pre-hearing document in APS Case No. 34739340, including (i) the December 4, 2024 Notice of Stay (DS 2030); (ii) the December 4, 2024 Notification of Discovery (DS 2044); and (iii) the December 4, 2024 Notice of Hearing Appointment (DS 2304) that set the January 24, 2025 hearing before Respondent Candelaria. Each document is captioned with the Sacramento Driver Safety Office letterhead and was executed by C. Winston, an authorized DMV employee operating from that office. Sacramento was therefore the administrative locus that processed Petitioner's case from the inception of formal proceedings through the issuance of the hearing notice that placed his commercial driving privilege at risk. **Third,** in the alternative,

venue would also be proper in the Superior Court for the County of San Joaquin as Petitioner's county of residence under Vehicle Code section 13559(a); Petitioner has elected to file in Sacramento County for the reasons set forth above and because the principal operative acts occurred here.

EXHAUSTION OF ADMINISTRATIVE REMEDIES

11. Petitioner has exhausted all administrative remedies. Petitioner timely requested an APS hearing; timely submitted, on December 9, 2024, a five-page "Notice of Response to Request for Discovery — Personal Statement" presenting the factual and legal grounds of his defense; appeared at the hearing on January 24, 2025; and presented the Detention Certificate, the dashcam transcript, and binding authority including Mercer v. DMV, 53 Cal.3d 753 (1991), and People v. Sanders, 31 Cal.4th 318 (2003). Respondent Candelaria's Decision constitutes the final agency action. No further administrative process is available or required.

TIMELINESS OF THE PETITION

12. This Petition is timely because the Decision is void *ab initio* for want of subject-matter jurisdiction. A void administrative order has no force or effect from the moment of its issuance and may be set aside at any time, by direct or collateral attack, without regard to ordinary limitations periods. (Code Civ. Proc., § 473(d).) The void character of the Decision is independent of, and prior to, any analysis of legal error within an exercise of jurisdiction; it arises from the complete statutory destruction of the Administrative Per Se framework's "lawful arrest" predicate before the hearing was ever convened. The governing legal framework and its application to the record are set forth in paragraphs 13 and 14 below.

13. California law distinguishes categorically between an order that is "void" — one rendered without jurisdiction over the subject matter or in complete excess of statutory authority

— and one that is merely "voidable" for legal error within an exercise of jurisdiction. (*People v. American Contractors Indemnity Co.* (2004) 33 Cal.4th 653, 660; *Abelleira v. District Court of Appeal* (1941) 17 Cal.2d 280, 287–288.) A void order "has no force or effect" and may be set aside at any time by direct or collateral attack. (Code Civ. Proc., § 473(d); *Heidary v. Yadollahi* (2002) 99 Cal.App.4th 857, 862; *Rochin v. Pat Johnson Manufacturing Co.* (1998) 67 Cal.App.4th 1228, 1239.) These principles apply with equal force to administrative orders rendered in excess of statutory authority. (*Pittman v. State Personnel Bd.* (1965) 233 Cal.App.2d 26, 31–32.) An order rendered in clear absence of all jurisdiction cannot be insulated from review by an ordinary limitations period; to hold otherwise would convert procedural deadlines into a license for state agencies to act ultra vires with impunity.

14. The Decision is void in this categorical sense. The Administrative Per Se refusal-suspension framework of Vehicle Code section 13353(a)(1) requires, as a jurisdictional and statutory predicate, that the driver have been "lawfully arrested." On November 5, 2024 — more than two months before the January 24, 2025 hearing — the Dublin CHP issued a formal Detention Certificate releasing Petitioner under Penal Code section 849(b)(1) for "insufficient grounds for making a criminal complaint." By operation of Penal Code sections 849(c) and 849.5, the encounter "shall not be deemed an arrest, but a detention only." That statutory effect is mandatory, automatic, and non-discretionary; no exercise of agency discretion can override it. Respondent Candelaria nevertheless convened the APS hearing and sustained the refusal suspension, exercising adjudicative power over a subject matter that did not legally exist at the time of the hearing. (See *Stump v. Sparkman* (1978) 435 U.S. 349, 356–357 [adjudicative action in clear absence of all jurisdiction is void].) The Decision was void at the moment of its issuance and remains void today. The thirty-four-day limitations period of Vehicle Code section 13559(a) confers no finality on an order rendered in clear absence of all jurisdiction and cannot bar this Petition.

STATEMENT OF FACTS

A. The November 1, 2024 Encounter

15. On November 1, 2024, at approximately 12:54 a.m., Petitioner was lawfully parked on the right shoulder of Interstate 580 East, just west of Isabel Avenue in Livermore, Alameda County, in a rental Tesla Model Y. Petitioner had pulled over because he felt fatigued. CHP Officers Santiago Meza-Gonzalez (Badge #023295) and Jose Melano (Badge #023054) approached the vehicle on the pretext of a welfare check.

16. The contemporaneous CHP dashcam audio-video recording (CHP Case No. RJ68845; recording duration 00:54:36 – 01:57:10) establishes the material facts. Officer Melano opened the locked passenger door without consent or warrant; Officer Melano observed a cup in the center console and stated, "I think it's booze," but immediately confirmed, "This is piss. It smells like piss." (Transcript, 00:58:51–00:59:05.) Officer Meza-Gonzalez declined even to smell the cup. (Id., 00:59:05.) Throughout the encounter, neither officer contemporaneously verbalized any observation of an odor of an alcoholic beverage emanating from Petitioner's breath or person.

17. Officer Meza-Gonzalez expressly told Petitioner there was "no pass or fail" for the field sobriety tests, and Officer Melano declined to administer certain tests because the ground was "uneven" and unsafe—not because of any refusal by Petitioner. (Transcript, 01:08:20–01:08:40; 01:10:14–01:10:30.) Officer Meza-Gonzalez expressly advised Petitioner that the Preliminary Alcohol Screening test was optional ("You're not required to do this." — Transcript, 01:10:54), and Petitioner lawfully declined under Vehicle Code section 23612. Immediately upon Petitioner's lawful refusal of the optional PAS test, Officer Meza-Gonzalez ordered him handcuffed at approximately 01:12 a.m.

B. The Detention Certificate and Statutory Nullification of the Arrest

18. On November 5, 2024, the Dublin CHP issued a formal Detention Certificate

referencing CHP Case No. RJ68845. The Certificate states that Petitioner's taking into custody "was a detention only, not an arrest," and that Petitioner was released pursuant to Penal Code section 849(b)(1) for "insufficient grounds for making a criminal complaint." The Detention Certificate is signed by the releasing officer (Badge No. 022511) for the Dublin CHP.

19. The statutory consequences are absolute and non-discretionary. **Penal Code section 849(c)** provides that the record of arrest of a person released under section 849(b)(1) "shall include a record of release. Thereafter, the arrest shall not be deemed an arrest, but a detention only." **Penal Code section 849.5** provides identically for cases in which no accusatory pleading is thereafter filed: "Thereafter, the arrest shall not be deemed an arrest, but a detention only." **Penal Code section 851.6(a)** mandates issuance of a certificate "describing the action as a detention."

20. No criminal charges were filed. The Alameda County District Attorney, to whom the CHP recommended charges under Vehicle Code sections 23152(a), 23152(b), and 23578, declined to file any accusatory pleading of any kind. The arresting agency and the prosecuting authority both formally rejected the arrest as lacking any evidentiary basis. By operation of law, the event ceased to be an arrest more than two months before the January 24, 2025 APS hearing.

C. The Discovery Submission and the APS Hearing

21. On December 4, 2024, the DMV issued: (a) a Request for Discovery (DS 2053); (b) a Notice of Stay (DS 2030); (c) a Temporary License (DS 2030A) valid through the outcome of hearing, expressly restricting Petitioner from "driving commercially"; and (d) a Notice of Hearing Appointment (DS 2304) setting the hearing for January 24, 2025 at 9:00 a.m. via Microsoft Teams before Respondent Candelaria (Meeting ID 241846391884; Conference ID 159660245).

22. On December 9, 2024, Petitioner timely submitted to the DMV a detailed five-page "Notice of Response to Request for Discovery — Personal Statement" setting forth the factual

and legal bases of his defense and citing, among other authorities, Terry v. Ohio, 392 U.S. 1 (1968); Florida v. Royer, 460 U.S. 491 (1983); Brown v. Texas, 443 U.S. 47 (1979); Brown v. Illinois, 422 U.S. 590 (1975); Wong Sun v. United States, 371 U.S. 471 (1963); Mercer v. DMV, 53 Cal.3d 753 (1991); People v. Torres, 173 Cal.App.4th 977 (2009); People v. Medina, 6 Cal.3d 484 (1972); People v. Reyes, 195 Cal.App.4th 946 (2011); and McDonnell v. DMV, 45 Cal.App.3d 653 (1975). The submission squarely raised each of the legal issues presented herein.

23. At the January 24, 2025 hearing, Petitioner presented: (a) the CHP dashcam video-audio recording and a verbatim transcript with synchronized timestamps; (b) the November 5, 2024 Detention Certificate, with the accompanying statutory text (Pen. Code, §§ 849(b)(1), 849(c), 849.5, 851.6(a)); (c) binding California Supreme Court authority, including Mercer v. DMV and People v. Sanders; and (d) detailed written legal analysis establishing that the arrest was unlawful at its inception and that the APS framework's "lawful arrest" predicate had been destroyed by operation of law.

D. The February 11, 2025 Decision — What Respondent Candelaria Did

24. In her Notification of Findings and Decision dated February 11, 2025 (APS Case No. 34739340), Respondent Candelaria did each of the following:

a. **Found "Lawful Contact"—** concluding that Officer Meza-Gonzalez "lawfully detained" Petitioner upon a "reasonable articulable suspicion" purportedly based on "objective symptoms of intoxication" and Petitioner's "admission to driving," without addressing the dashcam evidence that no objective symptoms of intoxication were contemporaneously verbalized and that the only odor observed was urine.

b. **Found "Lawful Arrest"—** concluding that Officer Meza-Gonzalez had probable cause to arrest Petitioner at 1:12 a.m. based on a recitation of the DS-367's

claims of "Slurred Speech, Red and/or Watery Eyes, and Odor of Alcohol," notwithstanding that the contemporaneous dashcam audio contains no such observations and that the officers' own contemporaneous identification of the only liquid in the vehicle was urine, not an alcoholic beverage.

c. **Found statutory authority to arrest under Vehicle Code section 40300.5—** despite the absence in the record of any observation of Petitioner in volitional movement of a motor vehicle, contrary to the holding of Mercer v. DMV, 53 Cal.3d 753 (1991), that section 40300.5 cannot supply authority to arrest absent the predicate of actual driving observed or inferred from competent evidence.

d. **Adopted the DS-367 as conclusive truth** under the presumption that "official duty has been regularly performed" (Evid. Code, § 664), and treated that presumption as effectively irrebuttable—notwithstanding the contemporaneous dashcam audio that directly contradicted the DS-367's sworn "strong distinct odor of an alcoholic beverage" claim in a material respect.

e. **Mischaracterized the record—** by declaring that "No evidence was presented to the contrary," when in fact Petitioner had presented the dashcam transcript, the Detention Certificate, binding California Supreme Court authority, and a detailed written legal analysis. The record squarely refutes the Decision's recitation.

f. **Dismissed Petitioner's arguments as "unpersuasive" without reasoned analysis—** without identifying which arguments, citing which authorities, or explaining why Mercer, Sanders, Music v. DMV, or the section 849(b)(1) Detention Certificate did not apply.

g. **Failed entirely to mention the Detention Certificate—** the single most legally

significant piece of evidence in the proceeding—anywhere in the four-page Decision. The Decision contains no analysis of, and no reference to, Penal Code sections 849(b)(1), 849(c), 849.5, or 851.6(a), notwithstanding that those provisions are independently dispositive of the refusal-suspension predicate required by Vehicle Code section 13353(a)(1).

h. **Ruled that the arresting officer "would have been negligent in his job duties if he did not conduct an investigation"—** a conclusory, result-oriented endorsement of every investigatory step without any constitutional, statutory, or factual analysis.

i. **Found a "Chemical Test Refusal"—** concluding that Petitioner "refused to voluntarily submit to a chemical breath test" and "refused to voluntarily submit to a chemical blood test," without ever first establishing the indispensable predicate of a "lawful arrest" required by Vehicle Code section 13353(a)(1).

j. **Sustained the suspension—** imposing a one-year Class A Commercial Driver's License suspension effective February 20, 2025 through February 19, 2026.

k. **Imposed a $125.00 reissue fee** under Vehicle Code sections 14904 and 14906.

l. **Imposed a three-year SR-22 financial-responsibility requirement** under Vehicle Code section 16430.

m. **Personally executed the Certificate of Service** of the Decision on Petitioner by United States mail on February 11, 2025, thereby finalizing the deprivation and triggering the running of judicial-review timelines.

STANDARD OF REVIEW

25. Because the Decision affects a fundamental vested right—Petitioner's commercial driving privilege, which is also his means of livelihood—this Court exercises its independent judgment on the evidence. (Code Civ. Proc., § 1094.5(c); Berlinghieri v. DMV, 33 Cal.3d 392, 396–398 (1983); Daniels v. DMV, 33 Cal.3d 532, 536 (1983).) The Court determines whether the agency proceeded without, or in excess of, jurisdiction; whether there was a fair trial; and whether there was a prejudicial abuse of discretion, which is established if the agency has not proceeded in the manner required by law, the order is not supported by the findings, or the findings are not supported by the weight of the evidence. (Code Civ. Proc., § 1094.5(b).)

FIRST CAUSE OF ACTION

Want of Statutory Predicate — No "Lawful Arrest"

(Veh. Code, § 13353(a)(1); Code Civ. Proc., § 1094.5(b))

26. Petitioner incorporates paragraphs 1 through 25 as though fully set forth herein.

27. Vehicle Code section 13353(a)(1) predicates a refusal suspension on the driver having been "lawfully arrested for any offense allegedly committed in violation of Section 23140, 23152, or 23154." The "lawful arrest" predicate is jurisdictional and statutory, not merely procedural. (Mercer v. DMV, 53 Cal.3d 753, 760–762 (1991); Music v. DMV, 221 Cal.App.3d 841, 850 (1990).)

28. The Decision is captioned "ADMINISTRATIVE PER SE - .08% BAC Refusal" and is sustained under the refusal framework of section 13353. By operation of Penal Code sections 849(b)(1), 849(c), and 849.5, the November 1, 2024 taking into custody "shall not be deemed an

arrest, but a detention only." That statutory effect attached on November 5, 2024—more than two months before the January 24, 2025 hearing—and was preserved by the District Attorney's declination to file any accusatory pleading.

29. The Decision therefore rests on a non-existent statutory predicate. It cannot stand as a matter of law. The Decision is in excess of jurisdiction and constitutes a prejudicial abuse of discretion within the meaning of Code of Civil Procedure section 1094.5(b).

SECOND CAUSE OF ACTION

Failure to Proceed in the Manner Required by Law

(Code Civ. Proc., § 1094.5(b); Topanga v. County of L.A., 11 Cal.3d 506 (1974))

30. Petitioner incorporates paragraphs 1 through 29 as though fully set forth herein.

31. An administrative agency must "set forth findings to bridge the analytic gap between the raw evidence and ultimate decision or order." (Topanga Ass'n for a Scenic Cmty. v. County of Los Angeles, 11 Cal.3d 506, 515 (1974).) That requirement is not satisfied by conclusory labels ("unpersuasive") or by silence in the face of controlling evidence.

32. The Decision fails this standard in five compounding respects: (a) it does not mention the Detention Certificate or any of Penal Code sections 849(b)(1), 849(c), 849.5, or 851.6(a); (b) it dismisses Petitioner's arguments as "unpersuasive" without identifying or analyzing them; (c) it neither distinguishes nor applies Mercer v. DMV, despite that case's controlling status on both the section 40300.5 predicate and the lawful-arrest predicate; (d) it neither distinguishes nor applies People v. Sanders or its rule barring post hoc justification of warrantless intrusions; and (e) it mischaracterizes the record by declaring that "No evidence was presented to the contrary."

33. Each of these defects constitutes a failure to proceed in the manner required by law. Together they show that the Decision is not the product of reasoned adjudication and cannot survive review under Code of Civil Procedure section 1094.5(b).

THIRD CAUSE OF ACTION

Findings Unsupported by the Weight of the Evidence

(Code Civ. Proc., § 1094.5(c); Berlinghieri v. DMV, 33 Cal.3d 392 (1983))

34. Petitioner incorporates paragraphs 1 through 33 as though fully set forth herein.

35. Exercising its independent judgment on the administrative record, this Court will find that the Decision's central factual findings are not supported by the weight of the evidence:

a. The finding that "Officer Meza smelled the strong odor of an alcoholic beverage emitting from [Petitioner's] breath and person" is directly contradicted by the dashcam audio. The recording captures no contemporaneous verbalization of any alcohol odor at any point during the 62-minute encounter. The only odor mentioned by either officer was urine, identified by Officer Melano on the recording itself.

b. The finding that Petitioner exhibited "objective signs of intoxication" is contradicted by the dashcam video, which shows Petitioner walking steadily, complying with commands, identifying his location and surroundings correctly, answering all questions coherently, and following multi-step instructions.

c. The finding of "unsatisfactory" performance on field sobriety tests is contradicted by Officer Meza-Gonzalez's own contemporaneous statements that there is

"no pass or fail" for the FSTs and by Officer Melano's contemporaneous admission that certain tests could not be safely administered because the ground was "uneven."

d. The finding that statutory authority to arrest under Vehicle Code section 40300.5 existed cannot be reconciled with Mercer v. DMV, 53 Cal.3d 753, 761–762 (1991), absent competent evidence of volitional driving observed or competently inferred. The dashcam record contains no such evidence.

e. The recitation that "No evidence was presented to the contrary" is itself factually false on the face of the administrative record, which includes Petitioner's December 9, 2024 five-page personal statement, the dashcam transcript, and the Detention Certificate.

36. Each of these findings was material to the ultimate determination, and each cannot stand under the independent-judgment standard applicable here.

FOURTH CAUSE OF ACTION

Structural Bias — Unconstitutional Dual-Role Framework

(U.S. Const., 14th Amend.; Cal. Const., art. I, § 7)

37. Petitioner incorporates paragraphs 1 through 36 as though fully set forth herein.

38. The DMV's own Notice of Hearing Appointment (Form DS 2304, Rev. 05/2023) served on Petitioner states: "The Hearing Officer will develop the facts and render a final decision on your matter." That formulation embeds the very combination of advocate and adjudicator roles that the California Court of Appeal has condemned on three separate occasions: California DUI Lawyers Ass'n v. DMV, 77 Cal.App.5th 517 (decided April 15, 2022) (combining "the roles of

advocate and adjudicator in a single person employed by the DMV violates due process under the Fourteenth Amendment"); Knudsen v. DMV, 101 Cal.App.5th 186 (decided April 4, 2024) (where the hearing officer acts as an advocate, "structural error" results and prejudice need not be shown); and Clarke v. Gordon (Cal. Ct. App., Sept. 12, 2024, No. G062856) 2024 WL 4163081 (naming the DMV Director personally as respondent).

39. Respondent Candelaria's conduct exemplifies the precise species of advocacy condemned in those decisions. She (a) adopted the arresting officer's narrative without independent scrutiny despite objective evidence of material contradiction; (b) ignored exculpatory evidence in the form of the dashcam transcript and the Detention Certificate; (c) applied an effectively irrebuttable presumption of regularity to the DS-367; and (d) ratified the suspension while declaring that "No evidence was presented to the contrary."

40. Under Knudsen, this is structural error. Petitioner need not prove additional prejudice. The Decision must be set aside on this independent ground.

FIFTH CAUSE OF ACTION

Excess of Jurisdiction — Adjudication of a Non-Existent Subject Matter

(Code Civ. Proc., § 1094.5(b))

41. Petitioner incorporates paragraphs 1 through 40 as though fully set forth herein.

42. The APS refusal framework requires a "lawful arrest" as a jurisdictional and statutory predicate. The November 5, 2024 Detention Certificate, issued under Penal Code section 849(b)(1), irrevocably destroyed that predicate as a matter of law. Respondent Candelaria nevertheless convened the hearing and sustained the suspension, exercising adjudicative power

over a subject matter that did not exist.

43. A decision rendered in excess of jurisdiction is void and must be vacated.

PRAYER FOR RELIEF

WHEREFORE, Petitioner respectfully prays that this Court enter judgment in his favor and issue a peremptory writ of administrative mandate as follows:

1. **Set aside in its entirety** the Notification of Findings and Decision dated February 11, 2025, in APS Case No. 34739340, signed by Respondent Diana Candelaria, as void and without legal effect;

2. **Vacate every finding** made in the Decision, including without limitation each of the findings of "Lawful Contact," "Lawful Arrest," statutory authority to arrest under Vehicle Code section 40300.5, and "Chemical Test Refusal";

3. **Vacate the one-year Class A Commercial Driver's License suspension** imposed against Petitioner from February 20, 2025 through February 19, 2026, and reinstate Petitioner's commercial driving privileges nunc pro tunc to February 20, 2025;

4. **Vacate the $125.00 reissue fee** imposed under Vehicle Code sections 14904 and 14906;

5. **Vacate the three-year SR-22 financial-responsibility requirement** imposed under Vehicle Code section 16430;

6. **Order the DMV to expunge** from Petitioner's driving record all notations,

entries, and adverse references arising from the Decision, including any reference to suspension, refusal, or SR-22 requirement attributable to APS Case No. 34739340;

7. **Order the DMV to refund** the $125.00 reissue fee paid pursuant to Vehicle Code sections 14904 and 14906 as a direct exaction of the void Decision, together with interest at the legal rate from the date of payment, with Petitioner expressly reserving all rights to seek restitution and damages for consequential third-party expenditures forced by the void Decision — including without limitation SR-22 insurance premiums and related fees totaling not less than $403.04 paid to date and continuing at not less than $29.55 per month under Policy No. GPCP-00713747-00 with a three-year exposure of not less than $1,340.04 — in his pending federal civil rights action, *Newanforbi v. Candelaria, et al.*, E.D. Cal. Case No. 2:26-cv-00983-DC-CSK, or in any other appropriate proceeding;

8. **Issue a declaratory judgment** that the Decision is void because (a) the statutory "lawful arrest" predicate of Vehicle Code section 13353(a)(1) did not exist at the time of the hearing by virtue of the Detention Certificate and Penal Code sections 849(b)(1), 849(c), and 849.5; (b) the dual-role framework employed at the hearing constitutes structural error under Knudsen v. DMV; and (c) the Decision fails the Topanga findings requirement;

9. **Award Petitioner** his costs of suit incurred herein, including reasonable attorney's fees to the extent permitted by Code of Civil Procedure section 1021.5 or other applicable provision; and

10. **Grant such other and further relief** as this Court deems just and proper.

Dated: May 18, 2026

/s/ Brendan Ngehsi Newanforbi

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BRENDAN NGEHSI NEWANFORBI

Petitioner, In Pro Per

VERIFICATION

I, BRENDAN NGEHSI NEWANFORBI, am the Petitioner in the above-entitled action. I have read the foregoing Verified Petition for Writ of Administrative Mandate and know its contents. The matters stated therein are true of my own knowledge, except as to those matters stated on information and belief, and as to those matters I believe them to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on May 18, 2026,

at Stockton, California.

/s/ Brendan Ngehsi Newanforbi

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BRENDAN NGEHSI NEWANFORBI

INDEX OF EXHIBITS

Exhibit 1 — Notification of Findings and Decision dated February 11, 2025 (APS Case No. 34739340), signed by D. Candelaria, Driver Safety Hearing Officer.

Exhibit 2 — Dublin CHP Detention Certificate (CHP Case No. RJ68845), dated November 5, 2024, certifying that the taking into custody "was a detention only, not an arrest," and that release was made under Penal Code section 849(b)(1).

Exhibit 3 — Transcript of California Highway Patrol Dashcam Video and Audio Recording, Incident of November 1, 2024, Interstate 580 East, Livermore (CHP Case No. RJ68845), Recording Duration 00:54:36 – 01:57:10.

Exhibit 4 — DS-367 Age 21 and Older Administrative Per Se Suspension/Revocation Order and Temporary Driver License executed by Officer Santiago Meza-Gonzalez on November 1, 2024.

Exhibit 5 — CHP Arrest-Investigation Report (Case No. RJ68845) prepared by Officer Santiago Meza-Gonzalez.

Exhibit 6 — Notice of Response to Request for Discovery — Personal Statement, submitted by Petitioner to the DMV on December 9, 2024.

Exhibit 7 — DMV Notice of Hearing Appointment (Form DS 2304, Rev. 05/2023) setting the January 24, 2025 hearing before Respondent Candelaria.

Exhibit 8 — Commercial Driver's License F7953179 issued to Petitioner, with doubles/triples and tank vehicle endorsements.

EXHIBIT 1

Notification of Findings and Decision

Dated: February 11, 2025

APS Case No. 34739340

Driver License / File No. F7953179

Signed by: D. Candelaria, Driver Safety Hearing Officer

California Department of Motor Vehicles,

Legal Affairs Division, Driver Safety Branch

1455 Frazee Road, Suite 400, San Diego, CA 92108

DEPARTMENT OF MOTOR VEHICLES
LEGAL AFFAIRS DIVISION
Driver Safety Branch
1455 Frazee Road, Suite 400
San Diego, CA 92108
laddssandiegooffice@dmv.ca.gov
Telephone: (833) 543-7703 FAX: 619-220-5418

STATE OF CALIFORNIA
DEPARTMENT OF MOTOR VEHICLES

In the Matter of:	) ADMINISTRATIVE PER SE- .08% BAC Refusal
BRENDAN NGWANFORBI	) NOTIFICATION OF FINDINGS AND DECISION
1455 CAT TAIL DR	) CASE NUMBER: 34739340
STOCKTON, California 95204	) DRIVER LICENSE or FILE NUMBER: F7953179
[redacted]	) ARREST DATE: November 1, 2024

The suspension against your driving privilege will be reimposed and is effective February 20, 2025.

This action will remain in effect through February 19, 2026.

BRENDAN NGWANFORBI (Respondent), the following findings and determinations are a result of your hearing on January 24, 2025.

FINDINGS OF FACT

I. Lawful Contact

Initial Contact:
Respondent was contacted by Officer Meza Badge #23295 with the Alameda County California Highway Patrol on 11/01/2024 at 12:55 AM under the following circumstances:
Officer Meza observed the Respondent parked on the right shoulder of I-580, just west of Isabel Avenue, when he conducted a welfare check. The Respondent was asleep when Officer Meza knocked on the right front passenger side window of the vehicle. Officer Meza made contact with the Respondent through the open right passenger side door. Respondent was then lawfully detained. A reasonable articulable suspicion to detain Respondent was based on Officer Meza's observations of objective symptoms of intoxication and Respondent's admission to driving.

II. Lawful Arrest

Respondent was lawfully arrested by Officer Meza at 1:12 AM.

Probable Cause supporting arrest:

Officer Meza had Probable Cause to arrest Respondent based on their observations of the following:

Objective signs of intoxication observed. Officer Meza observed Slurred Speech, Red and/or Watery Eyes, and Odor of Alcohol.

Other: Respondent relayed to Officer Meza he believed he was parked in a parking lot for seven minutes prior to the officer's arrival in which Officer Meza indicated he was parked on the side of the freeway.

Field Sobriety Tests (FSTs) conducted. Respondent performed unsatisfactorily on the following FSTs: HGN (Horizontal Gaze Nystagmus), and Modified Romberg.

Other: Officer Meza observed an orange 21 and over wristband on his right wrist.

Additional factors supporting the officer's belief Respondent had been driving a motor vehicle in violation of Sections 23152, 23153, or 23154: Officer Meza smelled the strong odor of an alcoholic beverage emitting from Respondent's breath and person while speaking to him in front of the patrol vehicle.

Statutory Authority supporting arrest:

Officer Meza had statutory authority to arrest Respondent.

Officer Meza had authority to arrest Respondent under Vehicle Code section 40300.5 based on: Respondent's vehicle was parked on the side of a highway when Officer Meza conducted a welfare check. Respondent was arrested to avoid injury to himself or property damage had he been allowed to drive away based on the objective symptoms of intoxication observed by Officer Meza.

Respondent contends: that he was not under the influence of an alcoholic beverage when he pulled over, he was tired and did not want to drive. Respondent argued the officer had indicated he had detected an odor of alcohol from the passenger side of the vehicle which was highly implausible. The officer also cited "red and watery eyes," and "slurred speech," however, these subjective observations were not corroborated by any objective evidence of impairment, such as erratic or unsafe behavior. Respondent contends on the improper escalation to a DUI investigation without probable cause. Furthermore, the incident occurred immediately after a holiday, during a period of heightened law enforcement targeting alcohol-related offenses.

Determination: Officer Meza certified under penalty of perjury on the DS 367, that under the laws of the State of California, the information on all pages of the Officer's Statement are true and correct. It is presumed official duty has been regularly performed. No evidence was presented to the contrary. Officer Meza observed objective symptoms of intoxication, which gave the officer the belief Respondent may have been driving under the influence of alcohol. The officer would have been negligent in his job duties if he did not conduct an investigation. As such, the argument is unpersuasive.

III. Admonition and Refusal

Admonition:

Respondent was admonished that their driving privilege would be suspended or revoked if they refused or failed to complete a required Chemical Test to determine the alcohol content of their blood by Officer Meza.

Chemical Test Refusal:

Respondent refused to or failed to complete the required Chemical Test.

Breath Test: Respondent refused to voluntarily submit to a chemical breath test.

Blood Test: Respondent refused to voluntarily submit to a chemical blood test.

DECISION

As a result of the preceding Findings and Determination, the suspension or revocation of your driving privilege is reimposed or sustained as specified above.

Dated: February 11, 2025

D. Candelaria
D. Candelaria - Driver Safety Hearing Officer

This action is independent of any other action taken by the court or this department.

Before a driver license can be issued or returned to you after you must complete the following:

- A $125.00 reissue fee must be paid to DMV §§14904 and 14906 VC.
- You must file proof of financial responsibility as provided in §16430 VC. (See attached or reverse.)
- You must maintain proof of financial responsibility for three years.

If you drive while your driving privilege is suspended or revoked, you may be arrested and, if convicted, jailed and/or fined.

Appeal Rights

You are entitled to a departmental review of this decision. A request for the departmental review does not stay the action. The review shall be limited to an examination of these findings and determination, and any evidence admitted at the hearing. It will not include a personal interview nor a review of evidence not presented at the hearing. To have this review, you must submit your written request with $120 for any action taken pursuant to §13353 VC or §13353.2 VC to the address shown above within 15 days of the effective date of the decision.

You may request a court review of this action by filing a petition for review of the order in the court of competent jurisdiction in your county of residence within 34 days from the date shown below if service of this notice was by mail, or within 30 days if service of this notice was made personally or electronically.

CERTIFICATE OF SERVICE

☐ presented to the person named above a true copy of this document.
☐ emailed to the person named above a true copy of this document.
☑ deposited in the United States mail ☑ at the address shown above,
☐ at ,
a true copy of this document, in a sealed envelope, with postage paid, and addressed to the person as shown on this document.

I am over the age of eighteen years, an employee of the Department of Motor Vehicles at the business address as shown above in the county where the office is located, and I am not a party to the cause herein mentioned.

I certify (or declare) under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

DATE	NAME OF AUTHORIZED DMV EMPLOYEE	SIGNATURE OF AUTHORIZED DMV EMPLOYEE
February 11, 2025	D. Candelaria	X D. Candelaria

Brendan Ngwanforbi
1455 Cat Tail Dr
Stockton, Ca 95204

⇩Fold Here⇩

⇩Fold Here⇩

A Public Service Agency

EXHIBIT 2

Dublin CHP Detention Certificate

Dated: November 5, 2024

Agency Report No. RJ68845

Issuing Agency: California Highway Patrol, Dublin — CHP-01991

Released by: Del Carlo, L., Officer (Badge No. 022511)

Statutory Basis: Penal Code § 849(b)(1)

Certification: “Was a detention only, not an arrest”

Document prepared by CHP22511 on May 12, 2025

BRENDAN NGEHSI NEWANFORBI
1455 CAT TAIL DR
STOCKTON, CA 95204

DEPARTMENT OF JUSTICE
STATE OF CALIFORNIA
(Rev. 07/2016)

DUBLIN CHP - 01991 - DETENTION CERTIFICATE

Penal Code section 849 provides:

(a) When an arrest is made without a warrant by a peace officer or private person, the person arrested, if not otherwise released, shall, without unnecessary delay, be taken before the nearest or most accessible magistrate in the county in which the offense is triable, and a complaint stating the charge against the arrested person shall be laid before the magistrate.

(b) A peace officer may release from custody, instead of taking the person before a magistrate, a person arrested without a warrant in the following circumstances:

(1) The officer is satisfied that there are insufficient grounds for making a criminal complaint against the person arrested.

(2) The person arrested was arrested for intoxication only, and no further proceedings are desirable.

(3) The person was arrested only for being under the influence of a controlled substance or drug and the person is delivered to a facility or hospital for treatment and no further proceedings are desirable.

(4) The person arrested was arrested for driving under the influence of alcohol or drugs and the person is delivered to a hospital for medical treatment that prohibits immediate delivery before a magistrate.

(c) The record of arrest of a person released pursuant to paragraphs (1) and (3) of subdivision (b) shall include a record of release. Thereafter, the arrest shall not be deemed an arrest, but a detention only.

Penal Code section 849.5 provides:

In any case in which a person is arrested and released and no accusatory pleading is filed charging him with an offense, any record of arrest of the person shall include a record of release. Thereafter, the arrest shall not be deemed an arrest, but a detention only.

Penal Code section 851.6 provides, in part:

(a) In any case in which a person is arrested and released pursuant to paragraph (1) or (3) of subdivision (b) of Section 849, the person shall be issued a certificate, signed by the releasing officer or his superior officer, describing the action as a detention.

(b) In any case in which a person is arrested and released and no accusatory pleading is filed charging him with an offense, the person shall be issued a certificate by the law enforcement agency which arrested him describing the action as a detention.

As required by Penal Code section 851.6, I hereby certify that the taking into custody of

NEWANFORBI, BRENDAN NGEHSI (NEWANFORBI, BRENDAN — Subject's Name (Subject's True Name)

on 11/01/2024 — Date

by the DUBLIN CHP - 01991 — Name of Agency Taking Custody

RJ68845 — Agency Report Number

was a detention only, not an arrest.

NEWANFORBI, BRENDAN NGEHSI (NEWANFORBI, BRENDAN NGEHSI) — Subject's Name (Subject's True Name)

was released on 11/05/2024 — Date

by the DUBLIN CHP - 01991 — Name of Releasing Agency

[signature] — Signature

DEL CARLO, L — Printed Name

022511 — Badge or Identification Number

OFFICER — Title

Detention Certificate was prepared by chp22511 (CALIFORNIA HIGHWAY PATROL, DUBLIN) on 05/12/2025 11:53 AM.

EXHIBIT 3

Transcript of CHP Dashcam Video
and Audio Recording

Incident Date: November 1, 2024

CHP Case No. RJ68845

Location: Interstate 580 East, Livermore, Alameda County

Recording Duration: 00:54:36 – 01:57:10

Officers: Meza-Gonzalez (Badge #023295); Melano (Badge #023054)

Certified by: Brendan Ngehsi Newanforbi

Original recording available for Court’s inspection upon request

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SACRAMENTO

BRENDAN NGEHSI NEWANFORBI, Petitioner, v.

DIANA CANDELARIA, et al., Respondents.

APS Case No. 34739340 | DL No. F7953179

TRANSCRIPT OF CHP DASHCAM VIDEO AND AUDIO RECORDING

Incident Date: November 1, 2024

Location: Interstate 580 East, Livermore, Alameda County, California

CHP Case Number: RJ68845

Recording Duration: 00:54:36 – 01:57:10

CERTIFICATE OF ACCURACY

I, Brendan Ngehsi Newanforbi, hereby certify that the following transcript is a true and accurate transcription of the audio and video recording captured by the California Highway Patrol dashcam during the incident of November 1, 2024. Timestamps are synchronized with the original recording. Speaker identifications are based on visual and audio identification from the recording. The original recording is available for this Court's inspection upon request.

LEGEND

Meza-Gonzalez: CHP Officer Santiago Meza-Gonzalez (Badge #023295)

Melano: CHP Officer Jose Melano (Badge #023054)

Plaintiff: Brendan Ngehsi Newanforbi

Dispatch: CHP Radio Dispatch

[Bracketed]: Actions, observations, or non-verbal events visible on recording

★ Gold box: APS legally significant moment with annotation

SUMMARY OF KEY LEGALLY SIGNIFICANT MOMENTS

(Annotations correspond to inline callouts throughout this transcript)

★ **00:56:43 — Warrantless door opening**

Officer Melano opens the locked passenger door without consent or warrant.

★ **00:58:51 — Urine confirmed — not alcohol**

Melano holds and smells the cup: 'No this is piss. This is pee.' Directly contradicts DS-367's sworn 'strong distinct odor of an alcoholic beverage.'

★ **00:59:02 — Meza-Gonzalez declines to smell cup**

'No I'm not gonna smell that.' The officer who claimed to smell alcohol refused the only opportunity to smell the only liquid in the vehicle.

★ **01:00:41 — Full spatial orientation**

Plaintiff correctly identifies his location as 'Livermore' without prompting — inconsistent with intoxication.

★ **01:00:44 — Visual acuity intact**

Plaintiff reads highway signs 50 yards away in darkness.

★ **01:09:52 — Officers admit: no pass/fail for FSTs**

Melano: 'Yeah there's not pass or fail.' Directly contradicts DS-367 finding of 'unsatisfactory' FST performance.

★ **01:10:27 — Walk-and-turn abandoned by officers**

Melano: 'uneven ground. I wouldn't do that one.' Officers — not Plaintiff — chose not to administer the test.

★ **01:10:54 — PAS test expressly optional**

Meza-Gonzalez: 'You're not required to do this.' Plaintiff's refusal was a lawful exercise of Veh. Code § 23612.

★ 01:11:03 — Coercive arrest threat

'If you choose to not consent to it then it'll be up to my discretion whether I put you under arrest for DUI or not.' Improper coercion to waive a statutory right.

★ 01:11:15–16 — Immediate retaliatory arrest

Arrest ordered one second after lawful PAS refusal. No independent basis articulated. CHP subsequently issued Detention Certificate under Pen. Code § 849(b)(1): 'was a detention only, not an arrest.'

★ 01:23:26 — Third confirmation: urine, not alcohol

Melano: 'Let me sanitize my gloves, there was piss everywhere.' Zero contemporaneous alcohol observations in 62 minutes of recording.

VERBATIM CORRECTED TRANSCRIPT

I. INITIAL APPROACH AND VEHICLE CONTACT (00:54:36 – 00:56:46)

00:54:36 — [CHP vehicle heading eastbound on I-580.]

00:55:25 — [CHP vehicle begins to pull over onto shoulder and behind the Tesla.]

00:55:37 — [CHP vehicle comes to a full and complete stop; audio recording activates.]

00:55:53 — Melano: "It's a rental. Huh."

00:55:57 — [Both officers exit CHP vehicle and walk toward Tesla on dirt shoulder, passenger side. Both have flashlights in hand.]

00:56:00 — [Meza-Gonzalez lifts left arm with flashlight (light on) and points it at Plaintiff's vehicle, passenger side.]

00:56:05 — [Both officers are now peering into Plaintiff's windows with flashlights, appearing to search the interior.]

00:56:07 — [Officers continue peering into vehicle. Meza-Gonzalez begins knocking on front passenger side window.]

00:56:07 — Melano: "It wasn't here earlier when we passed by."

00:56:09 — Melano: "I think it's booze."

> **★ APS SIGNIFICANCE — INITIAL SUSPICION**
>
> *Officer Melano's initial statement is speculative ('I think'). This suspicion is completely dispelled seconds later at 00:58:51 when Melano conclusively identifies the liquid as urine. No officer ever subsequently verbalizes any odor of alcohol from Plaintiff's breath or person.*

00:56:30 — Melano: "Oh look at this."

00:56:30 — [Meza-Gonzalez continues knocking on window to wake Plaintiff.]

00:56:40 — Melano: "Open the window."

00:56:43 — [Passenger side door is opened by Officer Melano without consent from Plaintiff.]

> **★ APS SIGNIFICANCE — WARRANTLESS ENTRY**
>
> *Officer Melano opens the locked passenger door without Plaintiff's consent and without a warrant. No exigent circumstances are verbalized. This is the point of first contact with the vehicle interior.*

00:56:46 — Melano: "Hello."

00:56:46 — Plaintiff: "Uh-huh."

00:56:47 — Melano: "Are you okay?"

00:56:48 — Plaintiff: "Yeah, we good."

00:56:49 — Melano: "Why are you here? Just tired?"

00:56:50 — [Plaintiff repeatedly says "no."]

00:56:52 — Melano: "What do you mean?"

00:56:54 — [Plaintiff repeatedly says "no."]

00:56:58 — Plaintiff: "We're good. We good, we good." "Yeah we're straight."

00:57:05 — Melano: "OK. Where were you coming from?"

00:57:11 — Plaintiff: "We're coming from uh, uh, a party."

II. CUP INSPECTION AND DETERMINATION (00:57:30 – 00:59:12)

00:57:30 — Plaintiff: "I've been here at this place right here for, since a little after midnight."

00:57:35 — Melano: "OK. How long have you been here for?"

00:57:39 — Meza-Gonzalez: "No, I mean like how long have you been parked here on the side of the road?"

00:57:43 — Plaintiff: "Oh parked at this parking lot right here?"

00:57:46 — Meza-Gonzalez: "This is not a parking lot."

00:57:49 — Plaintiff: "Two... two o'clock."

00:57:49 — [Plaintiff still groggy from sleep.]

00:57:51 — Meza-Gonzalez: "No, right there it says twelve fifty-seven a.m. on the dash. You see it says 12:57 a.m.?"

00:57:58 — Plaintiff: "Yeah I should be home by like 1:30."

00:58:01 — Meza-Gonzalez: "I understand. But um how long have you been here on the side of the road for?"

00:58:06 — Plaintiff: "Oh uh like 5-7 minutes."

00:58:07 — Meza-Gonzalez: "5-7 minutes? Okay. And you were at this party alone?"

00:58:13 — Meza-Gonzalez: "Like, I know but, you were driving? That was what I meant to ask you."

00:58:30 — Meza-Gonzalez: "How much have you had to drink at the party? You said it was like 2 hours ago?"

00:58:34 — Meza-Gonzalez: "Okay. What's in that cup right there?"

00:58:36 — Plaintiff: "Zero."

00:58:37 — Meza-Gonzalez: "You haven't had anything?"

00:58:38 — Plaintiff: "No, no."

00:58:46 — Plaintiff: "Don't drink it. Yeah don't drink it."

00:58:49 — Melano: "What is it? Let me see."

00:58:51 — Melano: "Is it water? No this is piss. This is pee."

> **★ APS SIGNIFICANCE — ALCOHOL SUSPICION CONCLUSIVELY DISPELLED**
>
> *Officer Melano, holding and examining the cup, conclusively identifies the liquid as urine — not alcohol. This is the definitive factual rebuttal to the DS-367's sworn claim of 'strong distinct odor of an alcoholic beverage.' The only liquid in the vehicle was urine. Neither officer ever subsequently verbalizes any odor of alcohol from Plaintiff's breath or person at any point in the remaining 58 minutes of recording.*

00:58:57 — Plaintiff: "I don't know what that is."

00:58:59 — Melano: "I'm telling you it's piss. It smells like piss."

> **★ APS SIGNIFICANCE — CONFIRMED: URINE, NOT ALCOHOL**
>
> *Officer Melano confirms by smell: the liquid is urine. Contrast with DS-367 narrative that Meza-Gonzalez 'smelled the strong odor of an alcoholic beverage emitting from Respondent's breath and person.' The dashcam audio never captures any such observation by either officer.*

00:58:59 — [Melano has liquid cup in hand and motions it. Meza-Gonzalez leans back.]

00:59:02 — Meza-Gonzalez: "No I'm not gonna smell that."

> **★ APS SIGNIFICANCE — MEZA-GONZALEZ DECLINES TO SMELL CUP**
>
> *Officer Meza-Gonzalez explicitly refuses to smell the cup. He never approaches it. This is fatal to the DS-367's claim that he detected 'a strong distinct odor of an alcoholic beverage' — he declined the only opportunity to smell the only container of liquid present.*

00:59:04 — Melano: "Yeah, I'm telling you it's piss."

00:59:05 — Plaintiff: "Oh, OK."

00:59:07 — Melano: "OK. Leave it there. Put it back."

00:59:12 — Meza-Gonzalez: "Could I just have you uh just step out of your vehicle real quick?"

III. PLAINTIFF EXITS VEHICLE AND IDENTIFICATION (00:59:20 – 01:01:16)

00:59:20 — [Plaintiff crosses over from passenger side to driver side at Meza-Gonzalez's command.]

00:59:25 — Meza-Gonzalez: "And then uh just hop out of your vehicle."

00:59:27 — Melano: "Where's your ID at?"

00:59:31 — Meza-Gonzalez: "Do you have any ID on you at all? Is it on your pants?"

00:59:34 — Melano: "Yeah he said it's in his pocket bro."

00:59:36 — Meza-Gonzalez: "Pocket? OK."

00:59:38 — Meza-Gonzalez: "What's your first name?"

00:59:38 — [Plaintiff calmly complying with commands, walking toward CHP vehicle in a manner consistent with no signs of impairment.]

> **★ APS SIGNIFICANCE — NO OBJECTIVE SIGNS OF IMPAIRMENT**
>
> *Dashcam video shows Plaintiff walking steadily and complying calmly. No stumbling, no loss of balance, no confusion observed. Contradicts DS-367's claim of 'objective symptoms of intoxication.'*

00:59:39 — Plaintiff: "Brendan, sir."

00:59:40 — Meza-Gonzalez: "Brendan? OK. Alright Brendan, just meet me right next to my car, OK?"

00:59:46 — [Melano can be seen opening rear/backseat passenger door and conducting a warrantless search while Plaintiff is being escorted by Meza-Gonzalez.]

> **★ APS SIGNIFICANCE — PRE-ARREST WARRANTLESS SEARCH**
>
> *Original transcript placed this 00:59:46 observation on a separate page after 01:00:06 entries. Corrected to chronological order. Note: this search occurs while Plaintiff has not yet been arrested — Melano is conducting a warrantless vehicle search before any arrest has been made.*

00:59:46 — Meza-Gonzalez: "What's your last name?"

00:59:47 — Plaintiff: "Newanforbi."

00:59:50 — Meza-Gonzalez: "What's your last name?"

00:59:51 — Plaintiff: "Newanforbi."

00:59:53 — Meza-Gonzalez: "You could — you could stand here."

00:59:53 — [Meza-Gonzalez motions Plaintiff to stand next to CHP vehicle.]

00:59:55 — Meza-Gonzalez: "So you said your last name was what?"

00:59:57 — Plaintiff: "NEW-WAN-FOR-BI."

01:00:00 — Meza-Gonzalez: "Newanforbi?"

01:00:01 — Plaintiff: "Yes."

01:00:02 — Meza-Gonzalez: "OK."

01:00:04 — Meza-Gonzalez: "Can I see your ID please?"

01:00:06 — Melano: "Meza?"

01:00:06 — [Melano calls Meza-Gonzalez's attention, then walks over with an empty can in hand.]

01:00:07 — Meza-Gonzalez: "Did you drink that?"

01:00:08 — Plaintiff: "No."

01:00:09 — Melano: "Mike's Hard Lemonade. Source alcohol."

> **★ APS SIGNIFICANCE — EMPTY CAN; NO EVIDENCE OF CONSUMPTION**
>
> *Melano presents an empty Mike's Hard Lemonade can. The can is empty — not a full beverage. No evidence is presented that Plaintiff consumed its contents. Plaintiff immediately denies consumption. No officer ever verbalizes smelling alcohol from Plaintiff's breath during this exchange.*

01:00:09 — Meza-Gonzalez: "No? You didn't drink that?"

01:00:09 — [Plaintiff nods 'no.']

01:00:11 — Meza-Gonzalez: "You haven't drank anything since you've been parked?"

01:00:14 — Plaintiff: "No."

01:00:15 — Meza-Gonzalez: "OK. Can I see your ID? Your ID real quick?"

01:00:17 — [Plaintiff calmly presents ID to Meza-Gonzalez.]

01:00:19 — Meza-Gonzalez: "Alright sir, thank you."

01:00:21 — Meza-Gonzalez: "Brendan Newanforbi."

01:00:21 — [Officer reading the ID.]

01:00:22 — [Plaintiff quietly nods head yes.]

01:00:24 — Meza-Gonzalez: "Uh, do you still live on Cat Tail?"

01:00:26 — [Plaintiff nods head and says yes.]

01:00:28 — Meza-Gonzalez: "You said you've been here for seven minutes. Uh, you drove home from a party. When was the party at?"

01:00:34 — Plaintiff: "It wasn't all the way in Oakland."

01:00:37 — Meza-Gonzalez: "Oakland? Oh and you're going back home to Stockton?"

01:00:39 — Plaintiff: "Yes."

01:00:40 — Meza-Gonzalez: "You know where you're at right now?"

01:00:41 — Plaintiff: "Right now, Livermore."

> **★ APS SIGNIFICANCE — FULL ORIENTATION AND COGNITION**
>
> *Plaintiff correctly identifies his precise location without prompting. This is inconsistent with alcohol impairment and directly contradicts the DS-367's 'objective symptoms of intoxication.'*

01:00:43 — Meza-Gonzalez: "You are in Livermore."

01:00:44 — [Plaintiff proceeds to read a highway sign about 50 yards away.]

01:00:44 — Plaintiff: "Isabella Avenue, Portola Avenue, ___ Avenue."

> **★ APS SIGNIFICANCE — VISUAL ACUITY AND COGNITION INTACT**
>
> *Plaintiff reads a highway sign 50 yards away in the dark. Demonstrates visual acuity, spatial orientation, and cognitive function inconsistent with intoxication.*

01:00:46 — Meza-Gonzalez: "Correct."

01:00:50 — Meza-Gonzalez: "Correct. And you haven't had any alcohol since you've been parked here?"

01:00:53 — Plaintiff: "No sir."

01:00:54 — Meza-Gonzalez: "Did you have any alcohol at the party?"

01:00:56 — Plaintiff: "No."

01:00:57 — Meza-Gonzalez: "No? OK."

01:00:57 — [Meza-Gonzalez reaches into shirt pocket, pulls out two notebooks and a pen. Flips open a page and continues questioning.]

01:01:16 — Meza-Gonzalez: "So why was the reason that you stopped on the side of the road? You just felt tired?"

IV. PRE-FST QUESTIONING (01:01:21 – 01:05:07)

01:01:21 — Plaintiff: "You know I'm a truck driver. So when I feel tired, when I feel fatigued, whenever I am unable to continue to drive that truck, I'm gonna pull over to the side of the road, try to get a nap. It's not often that I'm going to go into the exit. It's not often that I'm gonna do that because it's an immediate thing. How quickly can I move over to the side of the road, catch some shut-eye, wake up and continue on to finish the route? I adopt that same sort of mentality..."

01:01:55 — Meza-Gonzalez: "...when you're driving your personal vehicle?"

01:01:56 — Plaintiff: "...when I drive my personal vehicle."

01:01:58 — Meza-Gonzalez: "OK, is this your car though?"

01:01:59 — Plaintiff: "This is a rental."

01:02:02 — Meza-Gonzalez: "Do you know anything mechanically wrong with it or is it perfectly fine?"

01:02:06 — Plaintiff: "Uh, I don't know what could have been wrong with it. As far as I know, since I've only had it for what, less than a week."

01:02:15 — Meza-Gonzalez: "OK. Are you sick or injured?"

01:02:17 — Plaintiff: "Sorry?"

01:02:18 — Meza-Gonzalez: "Are you sick or injured?"

01:02:19 — [Plaintiff leans head toward the right to hear Meza-Gonzalez's question better.]

01:02:19 — Meza-Gonzalez: "Are you sick or injured?"

01:02:21 — Plaintiff: "Am I sick or injured physically? No."

01:02:26 — Meza-Gonzalez: "OK. Are you diabetic or epileptic?"

01:02:28 — Plaintiff: "I have — I have been diagnosed with pre-diabetes."

01:02:31 — Meza-Gonzalez: "Pre-diabetes? OK. And do you take insulin?"

01:02:34 — Plaintiff: "No sir, no sir. I don't take any insulin to treat the pre-diabetes."

01:02:41 — Meza-Gonzalez: "OK. So you don't have any physical impairments?"

01:02:48 — Plaintiff: "Besides the pre-diabetes and the uh..."

01:02:51 — Meza-Gonzalez: "Can I have you spit out whatever is in your mouth?"

01:02:51 — [Meza-Gonzalez motions with circular motion, points at his mouth.]

01:02:53 — Plaintiff: "Oh I'm sorry, that's — that's just like spit."

01:02:53 — [Plaintiff leaning downward and away from Meza-Gonzalez.]

01:02:54 — Meza-Gonzalez: "Is it seeds or what is it?"

01:03:01 — Plaintiff: "That's a hotdog, from the hotdog stand."

01:03:05 — Meza-Gonzalez: "Oh OK. I just wasn't sure what you were chewing on. That's why I wanted you to spit it out."

01:03:09 — Plaintiff: "Sorry."

01:03:10 — Meza-Gonzalez: "It's fine. Alright, um when was the last time you slept? 'Cause I know that we've got you sleeping right here. How long would you say you slept for, maybe like, you got like 5 minutes of shut-eye right now?"

01:03:19 — Plaintiff: "Yeah like only been 7, yeah."

01:03:28 — Meza-Gonzalez: "OK. And what did you last eat? You said a hotdog?"

01:03:31 — Plaintiff: "Yeah."

01:03:32 — Meza-Gonzalez: "What time did you have the hotdog?"

01:03:34 — Plaintiff: "What time is it now sir?"

01:03:35 — Meza-Gonzalez: "Uh right now it's 1 AM."

01:03:42 — Plaintiff: "Maybe like 11:30."

01:03:47 — Meza-Gonzalez: "And you were driving correct? The car, the Tesla?"

01:03:50 — Plaintiff: "I was in the driver's seat, yes sir."

01:03:53 — Meza-Gonzalez: "OK, but you were driving? 'Cause you said you came from a party in Oakland?"

01:03:57 — Plaintiff: "Oakland, yes."

01:03:59 — Meza-Gonzalez: "OK. Um, you started driving from Oakland, you're going to Stockton, and you said you know that you're in Livermore right?"

01:03:59 — [Meza-Gonzalez making hand motions.]

01:04:07 — Plaintiff: "Yeah, I'm aware of that."

01:04:12 — Meza-Gonzalez: "What you said you haven't been drinking anything at all? No alcohol? OK."

01:04:14 — Plaintiff: "No sir."

01:04:18 — Meza-Gonzalez: "Have you bumped your head recently? Like at all?"

01:04:21 — Plaintiff: "I'm not sure."

01:04:23 — Meza-Gonzalez: "OK."

01:04:29 — Meza-Gonzalez: "Are you under the care of a doctor or dentist?"

01:04:33 — Plaintiff: "If you ask me who my primary care doctor was, I wouldn't be able to tell you."

01:04:37 — Meza-Gonzalez: "That's fine. I was just — I just want to know if you're under the care of a doctor or dentist for something, like something, like an injury or something."

01:04:44 — Plaintiff: "Like I said, I have recently seen a doctor for high blood pressure."

01:04:51 — Meza-Gonzalez: "OK. Have you taken any medication or drugs?"

01:04:56 — Plaintiff: "No drugs or medicine."

01:05:00 — Meza-Gonzalez: "No? OK."

01:05:00 — [Meza-Gonzalez proceeds to command Plaintiff to come to his car.]

V. FIELD SOBRIETY TESTS (01:05:07 – 01:10:30)

01:05:07 — Meza-Gonzalez: "Alright, so what I'm gonna have you do is come off of my car, OK? I'm gonna have you put your feet together. Put your feet together for me. Put your hands down by your side, and then just remain like this until I tell you to do something else. Do you understand?"

01:05:21 — Plaintiff: "Yes sir."

01:05:22 — Meza-Gonzalez: "Alright. So what you're gonna do is you're gonna look at the tip of my finger with your eyes without moving your head. Do you understand?"

01:05:34 — Meza-Gonzalez: "Eyes test."

01:06:11 — Meza-Gonzalez: "Just continue looking at the tip of my finger, OK?"

01:06:54 — Meza-Gonzalez: "Alright, now come down to your nose, go around your face here. I'm not gonna touch you, OK?"

01:07:04 — Meza-Gonzalez: "OK."

01:07:04 — [Ends HGN test.]

01:07:05 — Meza-Gonzalez: "You can relax."

01:07:06 — Meza-Gonzalez: "What do you drive?"

01:07:12 — Plaintiff: "I drive a uh Tesla Model Y."

01:07:14 — Melano: "You need a jacket or anything?"

01:07:15 — Meza-Gonzalez: "I'm good."

01:07:17 — Meza-Gonzalez: "Uh, a Tesla Model Y?"

01:07:18 — Plaintiff: "A Tesla Model Y."

01:07:21 — Meza-Gonzalez: "So you don't drive a, you said you drive a truck right?"

01:07:33 — Plaintiff: "I do drive a semi truck for a living. I do have a Class A license."

01:07:34 — Meza-Gonzalez: "Alright so what I'm gonna have you do, put your feet together, hands down by your side, OK? And then just remain like this until I tell you to do something different. Do you understand?"

01:07:41 — Plaintiff: "Understood."

01:07:42 — Meza-Gonzalez: "Alright, so when I tell you to do so, not now, what you're gonna do, when I tell you to, you're gonna tilt your head back alright, and then when I tell you to do so, close your eyes. Close your eyes OK? Once you believe that 30 seconds have passed by, you're gonna open your eyes, you're gonna look at me, and you're gonna tell me to stop. Do you understand?"

01:07:58 — Plaintiff: "Understood."

01:07:59 — Meza-Gonzalez: "OK, so tilt your head back and close your eyes."

01:08:02 — [Meza-Gonzalez starts timer.]

01:08:40 — [Plaintiff opens eyes and looks at Meza-Gonzalez, signaling for time to stop.]

01:08:41 — Meza-Gonzalez: "Stop?"

01:08:44 — [Plaintiff nods head yes.]

01:08:45 — [Meza-Gonzalez stops timer.]

01:08:53 — [Meza-Gonzalez pulls notebook out, clicks pen, takes notes.]

01:08:58 — Meza-Gonzalez: "Alright so what I'm gonna have you do now is same thing. Keep your feet together, hands down by your side, and then just remain like this until I tell you to do something different, OK? What you're gonna do is you're gonna choose either leg of your choice, OK? You're gonna lift it off the ground OK? 1 thousand 1, 1 thousand 2, 1 thousand 3, OK?"

01:09:14 — Plaintiff: "Really?"

01:09:20 — Meza-Gonzalez: "Yeah. You want to do it? It's fine if you don't. You don't have to."

01:09:23 — Plaintiff: "Well I mean, you're giving me all these tests. It seems as though I'm passing them and then the level of difficulty just keeps increasing and increasing and increasing. I just wanna know if I've passed your test."

01:09:43 — Melano: "We have other tests you could do."

01:09:44 — Meza-Gonzalez: "Yeah there's other ones we could do."

01:09:46 — Plaintiff: "So I haven't passed any of your tests yet?"

01:09:49 — Meza-Gonzalez: "I'm not saying that you haven't passed them yet. I'm just having you do them first."

01:09:52 — Melano: "Yeah there's not pass or fail."

> **★ APS SIGNIFICANCE — OFFICERS ADMIT: NO PASS/FAIL STANDARD**
>
> *Officer Melano explicitly admits the field sobriety tests have no pass or fail standard. This admission is directly contradicted by the DS-367's characterization of Plaintiff's performance as 'unsatisfactory.' A finding of 'unsatisfactory' FST performance cannot stand when the administering officer contemporaneously admits there is no pass or fail standard for those same tests.*

01:09:54 — Plaintiff: "They obviously are because if there were pass or fail, if they were pass then I would have..."

01:09:58 — Meza-Gonzalez: "I need to do all of them. I go through all of them regardless if it's a pass or what you think is a pass or fail."

01:10:10 — Meza-Gonzalez: "Alright?"

01:10:12 — Plaintiff: "I don't think I — I don't know if I can balance on one knee."

01:10:14 — Meza-Gonzalez: "OK, well for the next one I'm gonna have you walk in a straight line, imaginary line. You want to do that one yes or no?"

01:10:23 — Plaintiff: "I mean I think we can do that. I mean..."

01:10:25 — Melano: "It's kind of sketch here bro."

01:10:26 — Meza-Gonzalez: "Is it 'cause it's on the side of the freeway?"

01:10:27 — Melano: "Yeah, it's on the side of the freeway and it's like uneven ground. I wouldn't do that one."

> **★ APS SIGNIFICANCE — WALK-AND-TURN TEST ABANDONED BY OFFICERS**
>
> *Officer Melano declines to administer the walk-and-turn test, citing 'uneven ground' on the freeway shoulder. The decision to abandon this test was made by the officers, not by Plaintiff. Any suggestion that Plaintiff failed or refused this test is factually unsupported by the recording.*

01:10:30 — Meza-Gonzalez: "Alright then."

VI. PAS TEST REQUEST AND ARREST (01:10:33 – 01:11:42)

01:10:33 — Meza-Gonzalez: "Alright, so then I'm gonna request you take a preliminary alcohol screening test for assisting me in determining whether you are under the influence of alcohol or not. You may refuse to take this test, however this is not an implied consent test and if you are arrested you will be required to give a sample of your blood or breath for the purpose of determining the alcoholic and drug content of your blood. Is that fine?"

01:10:51 — Plaintiff: "So you're saying that I am required or not required?"

01:10:54 — Meza-Gonzalez: "You're not required to do this. It'll assist me in determining whether you are under the influence of alcohol."

> **★ APS SIGNIFICANCE — PAS TEST EXPRESSLY OPTIONAL**
>
> *Meza-Gonzalez's exact words: 'You're not required to do this.' Under Vehicle Code § 23612, the PAS test is optional for non-probationary drivers over 21. Plaintiff's subsequent refusal was therefore a lawful exercise of a statutory right, not a violation.*

01:11:01 — Plaintiff: "And if I choose not to consent to it?"

01:11:03 — Meza-Gonzalez: "If you choose to not consent to it then it'll be up to my discretion whether I put you under arrest for DUI or not."

> **★ APS SIGNIFICANCE — COERCIVE THREAT TO COERCE OPTIONAL TEST**
>
> *Meza-Gonzalez conditions arrest on Plaintiff's choice regarding an admittedly optional test. This constitutes an improper threat to coerce Plaintiff into waiving his statutory right under Veh. Code § 23612. The threat converts what should be a free exercise of a statutory right into a coerced compliance-or-arrest choice.*

01:11:11 — [Meza-Gonzalez and Melano calibrating breathalyzer.]

01:11:13 — Meza-Gonzalez: "Yes or no?"

01:11:15 — Plaintiff: "I don't consent to that."

> **★ APS SIGNIFICANCE — LAWFUL EXERCISE OF STATUTORY RIGHT**
>
> *Plaintiff lawfully declines the optional PAS test under Veh. Code § 23612. This is the precise statutory right the Legislature created. What follows is the critical question: what happens in the next 1 second?*

01:11:16 — Meza-Gonzalez: "OK. Brendan. Alright then. I'm gonna have you just turn around please. Place your hands behind your back."

> **★ APS SIGNIFICANCE — IMMEDIATE RETALIATORY ARREST**
>
> *Arrest is ordered at 01:11:16 — one second after Plaintiff's lawful PAS refusal at 01:11:15. No intervening events, no further investigation, no independent basis for arrest articulated. The temporal sequence establishes that the arrest was triggered by the refusal of an optional test, not by any lawfully developed probable cause. Under Pen. Code § 849(b)(1), the CHP subsequently certified this taking-into-custody as 'a detention only, not an arrest' upon finding 'insufficient grounds for making a criminal complaint.'*

01:11:31 — Meza-Gonzalez: "Place your hands behind your back."

01:11:33 — Meza-Gonzalez: "Separate your feet, point your toes out and don't move, okay?"

01:11:33 — [Meza-Gonzalez proceeds to place handcuffs on Plaintiff.]

01:11:36 — Melano: "Go ahead."

01:11:36 — [Melano radios dispatch.]

01:11:42 — Dispatch: "Uh so he is on parole for PC 289. He's also a 290 registrant. He's clear with San Joaquin and I'm gonna check Alameda."

VII. POST-ARREST PROCESSING (01:12:32 – 01:25:24)

01:12:32 — Melano: "He's on parole."

01:12:33 — Meza-Gonzalez: "You have the keys right?"

01:12:54 — Meza-Gonzalez: "I'm gonna just search you right now."

01:12:54 — [Meza-Gonzalez proceeds with pat down.]

01:13:01 — Melano: "You need a property bag or no?"

01:13:02 — Meza-Gonzalez: "I got a property bag."

01:13:05 — Melano: "OK, look you want me to hold it for you?"

01:13:05 — Meza-Gonzalez: "I don't have it on me though."

01:13:14 — [Meza-Gonzalez reaches into Plaintiff's left pant pocket. Search of person continues.]

01:13:31 — Meza-Gonzalez: "What's this ankle bracelet for?"

01:13:33 — Plaintiff: "Like you said, I am on parole."

01:13:35 — Melano: "Yeah."

01:13:38 — Meza-Gonzalez: "So you're on post-community supervision?"

01:13:42 — Plaintiff: "Uh I think there's a difference between PRCS—"

01:13:43 — Melano: "Yeah, there is."

01:13:46 — Plaintiff: "PRCS, parole, and uh what's the other one, probation."

01:14:30 — Melano: "Hey boss is there anything in the car that you want us to note on an inventory form that's really important of value that you want to take with you?"

01:14:33 — Plaintiff: "Not necessarily, I mean..."

01:14:34 — Melano: "Like do you want to take your phone with you or something?"

01:14:36 — Plaintiff: "Like my motor vehicle record, of course."

01:14:38 — Melano: "You want to take your phone with you?"

01:14:39 — Plaintiff: "Everybody would probably wanna take their phone."

01:14:42 — Melano: "Cool, so I'll grab your phone, anything else you want?"

01:14:49 — Melano: "Like phone, wallet, keys."

01:14:53 — Plaintiff: "You haven't seen anything else in there that's of value?"

01:14:56 — Melano: "No, I'll check. I haven't checked yet. I'm asking first."

01:14:59 — Plaintiff: "Phone, keys, wallet, paperwork."

01:15:06 — Melano: "Alright just put him in there."

01:15:06 — [Meza-Gonzalez escorts Plaintiff to passenger side of squad car and puts him in the back seat, cuffs still on. He attaches the handcuffs to the vehicle frame and then closes the door.]

01:15:54 — Meza-Gonzalez: "Alright so uh you have the option of a chemical breath test or a chemical blood test, which one would you like to do?"

01:16:04 — Meza-Gonzalez: "You won't do it right now but when we get to the jail which one would you prefer to do, chemical breath or chemical blood?"

01:16:19 — Plaintiff: "I don't know. It seems like torture."

01:16:37 — Meza-Gonzalez: "Well the thing is you need to make that decision now because if let's say you decide

you don't wanna do either chemical breath or chemical blood, I will have to read you the back of a DMV sheet. I'll read you all the rules right for implied consent. Basically, what it breaks down to is if you don't choose a chemical breath or a chemical blood, the DMV will have to suspend your license."

01:16:59 — Meza-Gonzalez: "'Cause right now you're not refusing, you're just saying that basically you don't want to choose and I'm letting you know what's gonna happen."

01:17:11 — Meza-Gonzalez: "You wanna choose a chemical breath or blood?"

01:17:13 — Plaintiff: "And then I can't drive whatsoever?"

01:17:16 — Meza-Gonzalez: "I'll read you the back of the DMV sheet so that way you know everything OK? OK just watch your fingers."

01:17:16 — [Meza-Gonzalez closes passenger door, enters driver door.]

01:18:32 — Meza-Gonzalez: "You got a 130?"

01:18:34 — Melano: "Yeah I'm starting right now bro. I need to make sure there's no guns. He's on parole."

01:18:34 — [Melano continues searching vehicle.]

01:19:18 — [Meza-Gonzalez reads chemical test admonishment.]

01:20:49 — Meza-Gonzalez: "So that just broke it down detail by detail that basically if you refuse your driving privilege will be administratively suspended for one or three years by the DMV. Let's say you said you're sober right, you didn't drink anything whatsoever. Even if you still refuse to take a chemical breath or blood test, the DMV will administratively suspend your license for one year at least, and it could be up to three years."

01:21:17 — Plaintiff: "Well if that's what the DMV has to do then that's what the DMV has to do."

01:21:30 — Meza-Gonzalez: "So even though you know that you're gonna get suspended?"

01:21:33 — Plaintiff: "So you're saying the DMV will categorically suspend my license up to three years is what you're saying."

01:21:41 — Plaintiff: "Even as a truck commercial driver, that's what you're willing to do, force the DMV's hand?"

01:21:50 — Meza-Gonzalez: "I'm not forcing the DMV to do it, that's their rule."

01:21:52 — Plaintiff: "I get that."

01:21:54 — Meza-Gonzalez: "And all you have to do is take a chemical breath or chemical blood without refusing."

01:22:04 — Plaintiff: "With all due respect, by the power that's been vested upon you in the State of California..."

01:22:15 — Meza-Gonzalez: "So you're refusing to take a test?"

01:22:21 — Meza-Gonzalez: "OK."

01:23:11 — Melano: "Yeah we just have to write what time we last passed him here because he wasn't here earlier."

01:23:16 — Meza-Gonzalez: "But he said he was here for seven minutes."

01:23:17 — Melano: "Yeah plus we can't tell if—"

01:23:20 — Melano: "So I didn't circle in yet because I was doing my search first because he's on parole."

01:23:26 — Melano: "Let me sanitize my gloves, there was piss everywhere. Gross."

> **★ APS SIGNIFICANCE — FURTHER CONFIRMATION: URINE, NOT ALCOHOL**
>
> *Officer Melano confirms again at 01:23:26 that the substance encountered was urine ('piss everywhere'). This is the third explicit contemporaneous identification of the liquid as urine in the recording, at 00:58:51, 00:58:59, and 01:23:26. The DS-367's sworn 'odor of alcoholic beverage' claim has no contemporaneous audio support anywhere in the 62-minute recording.*

01:23:33 — Melano: "Yeah you want to start your warrant?"

01:23:34 — Meza-Gonzalez: "I could start the CLETS."

01:23:36 — Melano: "Start your CLETS yeah."

01:24:17 — Melano: "Any additional charges because he's on parole?"

01:24:17 — Meza-Gonzalez: "What's the parole for?"

01:24:21 — Melano: "'Cause he's supposed to be in prison, I don't think parole is. Actually there is a parole violation, that's says on. I don't know though."

01:25:24 — Melano: "Oh yeah it's gonna be a good partnership."

VIII. IMPLIED CONSENT ADVISEMENT (01:36:47 – 01:38:35)

01:36:47 — Melano: "Hey boss, um I'm gonna just read something for you OK?"

01:36:54 — Melano: "This is the implied consent advisement."

01:36:58 — Plaintiff: "Implied consent advisement."

01:37:00 — Plaintiff: "It's not a Miranda right?"

01:37:02 — Melano: "No, no, no. Miranda rights we only give when we still wanna ask you questions about the investigation."

01:37:07 — Plaintiff: "OK."

01:37:08 — Melano: "We already have everything we need right? So we're not gonna read Miranda because we don't need anything. Uh this is different. This is a valid implied consent advisement."

01:37:08 — [Melano reads implied consent advisement.]

01:37:32 — Melano: "So you're required by law like you have to do it."

01:37:34 — Plaintiff: "And what if I don't?"

01:37:35 — Plaintiff: "A choice huh?"

01:37:36 — Melano: "If you don't do it we're gonna get it anyways. It says it's going to be with a warrant and you're gonna automatically lose your license."

01:37:37 — Melano: "Yeah. Blood or breath?"

01:37:39 — Plaintiff: "Now when you say required by law, what does that mean?"

01:37:42 — Plaintiff: "Yeah we've already been through this man."

01:37:45 — Melano: "Well I don't know, I just got back in the car. I haven't talked to you about it."

01:37:46 — Plaintiff: "Sorry, sorry. Yeah we've already been through this."

01:37:49 — Melano: "Oh OK."

01:37:50 — Plaintiff: "Officer Meza and uh we're good to go."

01:37:53 — Melano: "About what? So you already told him which one you want?"

01:37:57 — Plaintiff: "Yeah. Officer Meza didn't fill in. I'm sorry your name officer sir?"

01:38:01 — Melano: "Oh Melano sir."

01:38:02 — Plaintiff: "Officer Meza he didn't fill officer Melano in on it?"

01:38:06 — Melano: "So which one are we doing sir? I'm asking you here."

01:38:08 — Melano: "Neither?"

01:38:09 — Plaintiff: "Yep."

01:38:10 — Melano: "OK so we're getting a warrant and we're gonna... so we're doing a warrant and we're gonna do it."

01:38:18 — Plaintiff: "I mean that's what Officer Meza said."

01:38:30 — Melano: "OK perfect, so you do understand though?"

01:38:35 — Melano: "I mean it's a yes or no question sir. In that sense you're saying yes. So you could we're gonna get the warrant, then we're gonna do it and then OK perfect. I just want to make sure you understand. Thank you."

IX. TRANSPORT AND CASUAL CONVERSATION (01:44:21 – 01:57:10)

01:44:21 — Melano: "We'll put your battery in the Tesla. Is there an alternator? Well there's a battery but there's no alternator."

01:44:28 — Meza-Gonzalez: "No alternator."

01:44:29 — Melano: "No? What keeps the battery charged then?"

01:44:34 — Melano: "That's a good question huh?"

01:44:37 — Melano: "Boss do you think your car has an alternator or nah?"

01:44:40 — Plaintiff: "I don't think electric vehicles have alternators."

01:44:42 — Melano: "That's what I'm saying 'cause it doesn't get—"

01:44:43 — Meza-Gonzalez: "The alternator is used to start up the car."

01:44:47 — Melano: "No, the battery is used to start the car. The alternator—"

01:44:53 — Plaintiff: "Teslas have motors."

> **★ APS SIGNIFICANCE — COHERENCE AND COGNITION DURING TRANSPORT**
>
> *During transport to Santa Rita Jail, Plaintiff engages in a coherent, technically accurate conversation about electric vehicle mechanics. This level of cognition is inconsistent with alcohol impairment. No officer makes any observation of impairment during this extended casual interaction.*

01:44:54 — Melano: "Oh. Dual motors. That part OK."

01:44:57 — Plaintiff: "They get charged up."

01:44:59 — Melano: "They don't need to be recharged?"

01:45:01 — Plaintiff: "Just like your phone gets charged."

01:45:02 — Melano: "Oh that's why you have a charger."

01:45:04 — Meza-Gonzalez: "Yeah."

01:45:05 — Melano: "And that's why the cars have an alternator 'cause the cars don't get charged."

01:45:27 — Plaintiff: "That's why you have a supercharger 'cause you take your car to it and charge it back up so you can drive it."

01:45:37 — Plaintiff: "Just like your phone."

01:45:37 — Melano: "Yeah thank you. I'm not a—"

01:45:45 — Melano: "Hey so I'm gonna put a paper in your bag that says when the vehicle is stored OK?"

01:52:05 — [Squad car leaves the scene with Plaintiff.]

01:57:10 — [Squad car arrives at the Santa Rita Jail, Dublin CHP transfer.]

— END OF TRANSCRIPT —

DECLARATION OF AUTHENTICITY

I, Brendan Ngehsi Newanforbi, declare under penalty of perjury under the laws of the State of California that the foregoing transcript is a true, accurate, and complete transcription of the California Highway Patrol dashcam video and audio recording from the incident of November 1, 2024, CHP Case No. RJ68845.

The original recording is in the possession of the California Highway Patrol and/or has been produced through discovery. This transcript was prepared from that recording and accurately reflects the statements and events captured therein.

I declare under penalty of perjury that the foregoing is true and correct.

Executed on: May 18, 2026

at Stockton, California.

/s/ Brendan Ngehsi Newanforbi

BRENDAN NGEHSI NEWANFORBI

Petitioner, In Pro Per

EXHIBIT 4

DS-367: Age 21 and Older Administrative Per Se Suspension/Revocation Order and Temporary Driver License

Dated: November 1, 2024

CHP Case No. RJ68845

Executed by: Officer Santiago Meza-Gonzalez (Badge #023295)

Alameda County California Highway Patrol

Driver License No. F7953179

Arrest Date: November 1, 2024

AGE 21 AND OLDER OFFICER'S STATEMENT

California Vehicle Code (CVC) §§13353, 13353.1, 13353.2 & 13389

A Public Service Agency

LAW ENFORCEMENT AGENCY CASE NUMBER	DETENTION/ARREST DATE	FOR DMV USE ONLY
RJ 69845	11/1/24	

DRIVER NAME (LAST, FIRST, M.I.)	DRIVER LICENSE NUMBER	COMMERCIAL?	STATE
NEWAN FORBI, BRENDAN, N	F7953179	☐ Yes ☒ No	CA

MAILING ADDRESS	STATE	ZIP CODE
~~NEWAN FORBI~~ 1455 CAT TAIL DR STOCKTON CA		95206

DATE OF BIRTH	SEX	HAIR	EYES	HEIGHT	WEIGHT
9/16/96	M	BLK	BRN	508	225

Arrest Type
For statistical purposes only. Check **all** that apply.
- ☒ Alcohol Use
- ☐ Cannabis Use
- ☐ Other Drug Use

LICENSE: ☐ Suspended/Revoked ☒ Surrendered (*Attached*) ☐ Not in Possession ☐ Unlicensed

VIOLATION: ☐ 0.08% or more BAC Chemical Test Results ☐ 0.01% or more BAC (*DUI Probation*) ☐ 0.04% or more BAC (*Commercial Vehicle*)
☒ Chemical Test Refusal (*Complete Reverse*) ☐ PAS or other Chemical Test Refusal (*DUI Probation*) (*Complete Reverse*)

VEHICLE: **License Number or VIN:** 9EAX768
☐ **Commercial Vehicle:** Vehicle requires a commercial driver license (CVC §15210). ☐ **Hazardous Materials:** Transporting materials requiring placards/markings (CVC §27903).

NARRATIVE: Describe in detail the facts, observations, and circumstances that led to the stop or contact with the driver in ***Narrative*** section on **Page 2** of this form.
Contact: On date: 11/01/24 at 12:55 ☒ AM ☐ PM in City/County LIVERMORE | ALAMEDA CA, the above driver was contacted.

DRIVING: ☐ Driving observed by this officer **or** ☐ Driving observed by another observer (complete ***Observation/Arrest*** section on **Page 2**)
Admission of Driving: ☒ Driver admitted to driving the vehicle **Collision:** ☐ Driver involved in a collision

TIME: (If driving not observed by an officer.)
What time did you stop driving **or** how long after driving/collision did you wait for law enforcement to arrive? **Driver Response:** 7m ☐ AM ☐ PM ☐ HR ☒ MIN

ARREST OR DETENTION STATEMENT: I had reasonable cause to believe the driver was driving a motor vehicle with alcohol and/or drugs present in the blood or while under the influence. The driver was lawfully arrested, or lawfully detained while on DUI probation, by this officer, or by the person shown in the ***Observation/Arrest*** section on Page 2, on date 11/01/24 at 1:12 ☒ AM ☐ PM for violation of CVC §§23152, 23153, or 23154.

OBJECTIVE SYMPTOMS OF INTOXICATION: ☒ Bloodshot/watery eyes ☒ Odor of alcoholic beverage ☐ Unsteady gait ☒ Slurred speech ☐ PAS results (*complete below*)
☒ Other: POOR FSTS Observed by: ☒ This officer ☐ Another observer:

PRELIMINARY ALCOHOL SCREENING TEST (PAS)

DUI Probation: Required. Non-DUI Probation: Optional. Always complete section if PAS results available.

Driver submitted to and completed a PAS test with the results of:

Test 1 _____ % BAC on ___/___/___ (DATE) at _____ (TIME) ☐ AM ☐ PM **Test 2** _____ % BAC on ___/___/___ (DATE) at _____ (TIME) ☐ AM ☐ PM

OFFICER CERTIFICATION: I certify under penalty of perjury under the laws of the State of California that: **(1)** I obtained the above PAS test results in the regular course of my duties, **(2)** I used PAS Model (*Name/Number*) REFUSED, Serial# _____, Manufactured by _____, **(3)** I administered this PAS test properly in accordance with the manufacturer's guidelines and instructions, **(4)** I have received training on the proper operation of this device and administration of the PAS test and am competent and qualified to operate the device, and **(5)** the device was functioning properly at the time of the test.

Date / / Signature X Badge/ID Number Agcy./Div

CHEMICAL TEST

Breath Test Results: Attach copy of the results, if available.

Test 1 _____ % BAC on ___/___/___ (DATE) at _____ (TIME) ☐ AM ☐ PM **Test 2** _____ % BAC on ___/___/___ (DATE) at _____ (TIME) ☐ AM ☐ PM **Test 3** _____ % BAC on ___/___/___ (DATE) at _____ (TIME) ☐ AM ☐ PM (*WHEN APPLICABLE*)

BREATH TEST MACHINE OPERATOR CERTIFICATION: I certify under penalty of perjury under the laws of the State of California, that the above breath test sample results were obtained in the regular course of my duties. I further certify that I am qualified to operate this equipment and that the test was administered pursuant to the requirements of Title 17 of the *California Code of Regulations*.

Date / / Signature X Badge/ID Number Agcy./Div

BLOOD TEST RESULTS: Blood test on date: 11/01/24 at 2:38 ☒ AM ☐ PM

URINE TEST RESULTS: First void on date: / / at ☐ AM ☐ PM Test on date: / / at ☐ AM ☐ PM

I certify under penalty of perjury, under the laws of the State of California, that the information contained on all pages of this Officer's Statement is true and correct.

EXECUTED ON: Date 11/1/24 in City LIVERMORE County ALAMEDA

OFFICER'S PRINTED NAME	BADGE/ID NUMBER	TELEPHONE NUMBER
MEZA	23295	(925) 828-0466
AGENCY	**AREA**	**COURT CODE (IF UNKNOWN, COURT NAME)**
CHP	34	01435

I ☒ **did** ☐ **did not** personally serve a copy of the Order of Suspension/Revocation to the driver.

Date 11/1/24 Signature of **Arresting** Officer X

ORDER SERVED BY ANOTHER OFFICER: If order was served on driver by **another officer** have that officer complete this section.
I personally served a copy of the order to the driver on the date shown below:

Date / / Serving Officer's *Printed* Name Badge/ID Number Signature Of Serving Officer X

continued on reverse

CHEMICAL TEST ADMONITION

(CVC §§23154, 23612)

I admonished the driver on date: 11 / 1 / 24 at 0130 ☑ AM ☐ PM

1. You are required by state law to submit to and complete a chemical test to determine the alcohol and/or drug content of your blood.
2. Because I believe you are under the influence of alcohol or a combination of alcohol and drugs, you have a choice of taking a breath or blood test. If you are on DUI Probation you are required to submit to a Preliminary Alcohol Screening Test.
3. Availability of Tests. (*Read only when applicable.*)
   - ☐ **When Applicable:** Since the breath and blood tests are unavailable; you are incapable of completing a breath or blood test; or you are afflicted with hemophilia or are using an anticoagulant medication, you are deemed to have given your consent to chemical testing of your urine.
   - ☐ **When Applicable:** Since you need medical treatment, your choice is limited to the (*check all available*) ☐ blood, ☐ breath, and/or ☐ urine test(s), the only test(s) available at _____.
4. If you refuse to submit to, or fail to complete a chemical test, your driving privilege **will** be administratively suspended for **one year** or administratively revoked for **two or three years** by the Department of Motor Vehicles. A second offense within ten years of a separate violation of driving under the influence, including such a charge reduced to reckless driving, or vehicular manslaughter, or a violation of CVC §23140, which resulted in a conviction, or separate administrative determination that you were driving with a BAC of 0.01% or more while under age 21; or a separate administrative determination that you were driving with a BAC of 0.01% or more while on DUI probation, or a BAC of 0.04% or more while operating a commercial motor vehicle, or a BAC of 0.08% or more at any age, or you refused a test, will result in a two-year administrative revocation. Three or more offenses within ten years of any combination of the above violations, convictions or separate administrative determinations will result in a three-year administrative revocation.
5. Refusal or failure to complete a chemical test may be used against you in court.
6. Refusal or failure to complete breath or urine testing will result in a fine and mandatory imprisonment if you are convicted of a violation of CVC §§23152 or 23153.
7. You do not have the right to talk to an attorney or have an attorney present before stating whether you will submit to a test, before deciding which test to take, or during the test.
8. If you cannot, or state you cannot, complete the test you choose, you must submit to and complete a remaining test.

DRIVER RESPONSE: Include statements or actions by the driver that indicate a refusal or failure of each test.

☐ **Will you take a Preliminary Alcohol Screening Test?** (*DUI Probation*) _____

☐ **Will you take a Breath Test?** _____

☐ **Will you take a Blood Test?** _____

TEST UNAVAILABLE: One or more tests were unavailable. ☐ PAS test unavailable ☐ Breath test unavailable ☐ Blood test unavailable

Explain:

LANGUAGE: If not given in English, admonition was given in ☐ Spanish ☐ Other language (*specify*):

Admonition Read by a Different Officer: If the above Chemical Test Admonition was read to arrestee by another officer, indicate that officer's information:

OFFICER NAME	BADGE/ID NUMBER	AGENCY /DIVISION	TELEPHONE NUMBER
			( )

DRUG ADMONITION

1. Because I believe you are under the influence of drugs or a combination of drugs and alcohol, you are required by state law to submit to a blood, breath, or urine test. A urine test is available only if you are afflicted with hemophilia or are using an anticoagulant medication.
   - ☐ **When Applicable:** Because you have already submitted to or refused or failed to complete a breath test **or** a breath test is unavailable, your choice is limited to a blood test or a urine test, when applicable.
2. If you refuse to submit to, or fail to complete a chemical test, your driving privilege **will** be administratively suspended for **one year** or administratively revoked for **two or three years**, by the Department of Motor Vehicles. A second offense within ten years of a separate violation of driving under the influence, including such a charge reduced to reckless driving, or vehicular manslaughter, or a violation of CVC §23140, which resulted in a conviction, or separate administrative determination that you were driving with a BAC of 0.01% or more while under age 21, or a separate administrative determination that you were driving with a BAC of 0.01% or more while on DUI probation, or a BAC of 0.04% or more while operating a commercial motor vehicle, or a BAC of 0.08% or more at any age, or you refused a test, will result in a two-year administrative revocation. Three or more offenses within ten years of any combination of the above violations, convictions or separate administrative determinations will result in a three-year administrative revocation.
3. Refusal or failure to complete a chemical test may be used against you in court.
4. Refusal or failure to complete breath or urine testing will result in a fine and mandatory imprisonment if you are convicted of a violation of CVC §§23152 or 23153.
5. You do not have the right to talk to an attorney or have an attorney present before stating whether you will submit to a test, before deciding which test to take, or during the test.

DRIVER RESPONSE: Include statements or actions by the driver that indicate a refusal or failure of each test.

☐ **Will you take a Blood Test?** _____

☐ **Will you take a Urine Test?** _____

TEST UNAVAILABLE: One or more tests were unavailable. ☐ Blood test unavailable ☐ Urine test unavailable

Explain:

LANGUAGE: If not given in English, admonition was given in ☐ Spanish ☐ Other language (*specify*):

Admonition Read by a Different Officer: If the above Drug Admonition was read to arrestee by another officer, indicate that officer's information:

OFFICER NAME	BADGE/ID NUMBER	AGENCY/DIVISION	TELEPHONE NUMBER
			( )

continued on next page

STATE OF CALIFORNIA DMV DEPARTMENT OF MOTOR VEHICLES
A Public Service Agency

AGE 21 AND OLDER OFFICER'S STATEMENT

CVC §§13353, 13353.1, 13353.2 & 13389

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LAW ENFORCEMENT AGENCY CASE NUMBER	DETENTION/ARREST DATE	FOR DMV USE ONLY
RS68845	11/1/24	

DRIVER NAME (LAST, FIRST, M.I.)	DRIVER LICENSE NUMBER	COMMERCIAL?	STATE
NEWANFORBI, BRENDAN, N	F7953179	☐ Yes ☒ No	CA

MAILING ADDRESS	STATE	ZIP CODE
~~NEWANFORBI~~ 1455 CAT TAIL DR STOCKTON	CA	95206

DATE OF BIRTH	SEX	HAIR	EYES	HEIGHT	WEIGHT
9/16/96	M	BLK	BRN	508	185

Arrest Type
For statistical purposes only.
Check **all** that apply.
☒ Alcohol Use
☐ Cannabis Use
☐ Other Drug Use

LICENSE: ☐ Suspended/Revoked ☒ Surrendered (*Attached*) ☐ Not in Possession ☐ Unlicensed

VIOLATION: ☐ 0.08% or more BAC Chemical Test Results ☐ 0.01% or more BAC (*DUI Probation*) ☐ 0.04% or more BAC (*Commercial Vehicle*)
☒ Chemical Test Refusal (*Complete Reverse*) ☐ PAS or other Chemical Test Refusal (*DUI Probation*) (*Complete Reverse*)

OBSERVATION/ARREST: If driving or collision was observed by someone other than the arresting officer, **or** if arrest was completed by another officer or person, input that person's information.

☐ Driving or Collision observed by: ☐ Arrest made by:	Observation or Arrest made by ☐ Officer ☐ Citizen	☐ Driving or Collision observed by: ☐ Arrest made by:	Observation or Arrest made by ☐ Officer ☐ Citizen
NAME (*PLEASE PRINT*)		NAME (*PLEASE PRINT*)	
ADDRESS		ADDRESS	
TELEPHONE NUMBER ( )	BADGE/ID NUMBER / AGENCY/DIVISION	TELEPHONE NUMBER ( )	BADGE/ID NUMBER / AGENCY/DIVISION

NARRATIVE

Describe in detail the facts, observations, and circumstances that led to the stop or contact. Print or write directly on this page.
A portion of another report may be **cut and pasted** below but should be dated and contain an original signature.
Attach arrest, collision, and/or supplemental report(s) if available.
If arrest was made per CVC **§40300.5** state the facts and circumstances that support the arrest.
DUI Probation Violations: Indicate below how you determined the driver was on DUI probation.

On 11/01/2024 at approximately 0055 hours, I was on duty, in full tan California Highway Patrol (CHP) uniform, driving a fully marked CHP patrol vehicle (1633363). My partner, Officer Melano ID 023054, was seated in the right front passenger of my patrol vehicle, also in full tan CHP uniform. We were traveling eastbound on I-580, just west of Isabel Avenue, when we came upon a Gray Tesla Model Y (S/V) on the right shoulder of I-580, just west of Isabel Avenue. I proceeded to park my patrol vehicle right behind the Tesla on the right shoulder to make a welfare check on the Tesla. I conducted a passenger side approach of the Tesla and observed a black male adult seated in the driver seat of the Tesla. The subject was asleep, and I noticed the subject was wearing an orange 21 + wrist band on his right wrist. I knocked on the right front passenger side window of the Tesla and the subject woke up. The subject seemed very confused and disoriented. I contacted the subject through the open right passenger side door and I could smell the distinct odor of an alcoholic beverage emitting from within the vehicle. I asked the subject if he was okay, and he related yes. The subject related he was on a parking lot, and I proceeded to informed him he was not in a parking lot, and he was on the side of the freeway. I asked the subject how long he had been parked on the side of the freeway and he related approximately 7 minutes. I asked him if he was alone, and he related yes. I asked him if he drove to that location and he related yes, from a party in Oakland. I asked the subject if he had consumed any alcoholic beverages, and he related no. I conducted a DUI evaluation on the subject and at 0112 hours, I placed the subject (Newanforbi) under arrest for a violation of California Vehicle Code section 23152(a), driving while under the influence of alcohol, per 40300.5 VC.

S.M 11/1/24

continued on reverse

FORWARD THIS DOCUMENT TO THE DMV WITHIN 5 BUSINESS DAYS OF THE ARREST.

Forward pages 1, 2 and 3 to your local Driver Safety Office.
The Driver Safety addresses and telephone numbers are listed below.
White—***DMV*** Yellow—***Law Enforcement*** Pink—***Driver***

DEPARTMENT OF MOTOR VEHICLES — DRIVER SAFETY OFFICES

LOCATION	TELEPHONE	FAX	ADDRESS
Bakersfield	(661) 833-2103	(661) 833-2102	5800 District Blvd., Ste. 100-B, 93313
City of Commerce	(323) 724-4000	(323) 724-9262	5801 E. Slauson Ave., 2nd Flr., Ste. 250, 90040
City of Orange	(714) 703-2511	(714) 703-2526	790 The City Dr., Ste. 420, 92868
Covina	(626) 974-7137	(626) 974-7118	1365 N. Grand Ave., Ste. 101, 91724
El Segundo	(310) 615-3500	(310) 615-3581/3582	390 N. Pacific Coast Hwy., Ste. 2075, 90245
Fresno	(559) 445-6399	(559) 445-6379	2510 S. East Avenue, Ste. 310, 93706
Oakland	(510) 563-8900	(510) 563-8950/8951	7677 Oakport St., Ste. 220, 94621
Oxnard	(805) 988-3050	(805) 988-1420	2051 N. Solar Dr., Ste. 125, 93036
Redding	(530) 224-4755	(530) 224-4737	2650 Churn Crk. Rd., Ste. 200, 96002
Sacramento	(916) 227-2970	(916) 227-0174/2901	4700 Broadway, 2nd Flr., 95820
San Bernardino	(909) 383-7413	(909) 383-7439	1845 Business Center Dr., Ste. 212, 92408
San Diego	(619) 220-5300	(619) 220-5418	1455 Frazee Rd., Ste. 400, 92108
San Francisco	(415) 557-1170	(415) 557-7375	1377 Fell Street, 2nd Flr., 94117
San Jose	(408) 229-7100	(408) 229-7128/7129	90 Great Oaks Blvd., Ste. 104, 95119
Santa Rosa	(707) 576-2710	(707) 543-7154	2570 Corby Ave., 95407
Stockton	(209) 948-7715	(209) 463-4858	710 N. American St., 95202
Van Nuys	(818) 376-4217	(818) 376-4215/4216	6150 Van Nuys Blvd., Ste. 205, 91401

continued on next page

AGE 21 AND OLDER ADMINISTRATIVE PER SE SUSPENSION/REVOCATION ORDER AND TEMPORARY DRIVER LICENSE

STATE OF CALIFORNIA DMV DEPARTMENT OF MOTOR VEHICLES
A Public Service Agency

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Driver **must** be given a copy of this order. **DMV telephone number (916) 657-0214.**

LAW ENFORCEMENT AGENCY CASE NUMBER	DETENTION/ARREST DATE	FOR DMV USE ONLY
R568845	11/1/24	

DRIVER NAME (*LAST, FIRST, M.I.*)	DRIVER LICENSE NUMBER	COMMERCIAL?	STATE
NEWAN FORBI, BRENDAN, N	F7953179	☐ Yes ☒ No	CA

MAILING ADDRESS	STATE	ZIP CODE
~~NEWAN FORBI~~ 1455 CAT TAIL DR STOCKTON CA		95206

DATE OF BIRTH	SEX	HAIR	EYES	HEIGHT	WEIGHT
9/16/96	M	BLK	BRN	508	185

Arrest Type
For statistical purposes only.
Check **all** that apply.
☒ Alcohol Use
☐ Cannabis Use
☐ Other Drug Use

LICENSE: ☐ Suspended/Revoked ☒ Surrendered (*Attached*) ☐ Not in Possession ☐ Unlicensed

VIOLATION: ☐ 0.08% or more BAC Chemical Test Results ☐ 0.01% or more BAC (*DUI Probation*) ☐ 0.04% or more BAC (*Commercial Vehicle*)
☒ Chemical Test Refusal (*Complete Reverse*) ☐ PAS or other Chemical Test Refusal (*DUI Probation*) (*Complete Reverse*)

You are hereby notified that your privilege to operate a motor vehicle will be suspended or revoked effective 30 days from the issue date of this order as shown below, and until you pay a $125 reissue fee and file proof of financial responsibility as shown on the reverse.
For additional information call (916) 657-0214.

TEMPORARY DRIVER LICENSE

This document must be carried with you and shall serve as your temporary California driver license. It is subject to the same class(es) and all restrictions as your permanent driver license. **This temporary driver license does not provide you with any driving privileges if you do not have a California driver license or your license is expired, suspended, revoked, canceled, or denied.** It expires at midnight 30 days from the issue date of this order shown below.

This action is taken under authority of *California Vehicle Code* (CVC) §§13353, 13353.1, 13353.2 and 13389 because you were arrested or detained for driving under the influence of alcohol and/or drugs and:

BAC 0.01% PAS, Breath, Blood or Urine Test DUI Probation	You completed a PAS, breath, blood, or urine test and the officer believes the results will show 0.01% BAC or more. If the laboratory results show your BAC was less than 0.01%, this suspension will be set aside. Your driver license will be reissued to you if you do not have another suspension or revocation in effect.
BAC 0.08% Breath, Blood, or Urine Test	You completed a breath test with 0.08% BAC or more, or you completed a blood or urine test and the officer believes the results will show 0.08% BAC or more. If the laboratory results show that your BAC is less than 0.08%, this suspension or revocation will be set aside. Your driver license will be reissued to you if you do not have another suspension or revocation in effect.
BAC 0.04 % Breath, Blood or Urine Test while driving a Commercial Vehicle	You completed a breath test with 0.04% BAC or more, or you completed a blood or urine test and the officer believes the results will show 0.04% BAC or more. If the laboratory results show that your BAC is less than 0.04%, this suspension or revocation will be set aside. Your driver license will be reissued to you if you do not have another suspension or revocation in effect.
Chemical Test Refusal	You refused to submit to, or failed to complete, a chemical test of the alcohol and/or drug content of your blood.

COMMERCIAL DISQUALIFICATION

A commercial disqualification action will be taken due to any of the following: if you refused a chemical test, if you had a 0.04% BAC or more while operating a commercial motor vehicle as defined in CVC §15210 or while transporting hazardous materials, or held a commercial driver license and were driving any vehicle when you had a 0.08% BAC or more.

HEARING INFORMATION

YOU HAVE **10 DAYS** FROM RECEIPT OF THIS NOTICE TO REQUEST A HEARING TO SHOW THAT THE SUSPENSION OR REVOCATION IS NOT JUSTIFIED. ***The suspension or revocation will not be stayed (delayed) unless you request a hearing within 10 DAYS from the issue date of this order and DMV cannot provide a hearing before the effective date of the suspension or revocation and make a determination.*** Hearings are conducted only to determine questions of fact as described on the reverse. Your need for a license cannot be considered at a hearing. **If you want a hearing or have questions regarding this matter, contact the DMV at (916) 657-0214.** A telephone hearing will be conducted unless you request an in-person hearing. Before the hearing you may see or obtain copies of the department's evidence. ***You must request copies of the department's evidence at least 10 DAYS prior to the date set for commencement of the hearing in order to receive them prior to the hearing date.*** If you want the information released to someone else, give them signed permission. ***You have the right to have a sign or language interpreter present at your hearing. If you require the service of an interpreter, immediately notify DMV of the need for such service. During the hearing*** you may present oral testimony and/or other evidence. Testimony is taken under oath or affirmation, and the hearing is recorded. You may be represented by legal counsel, or you may represent yourself. The arresting officer(s) may be subpoenaed in this matter, if it is determined that his or her testimony is needed. If you wish to question the arresting officer(s), you have the right to have subpoenas issued on your behalf. You may subpoena any other witness(es) you feel may help your case, and you have the right to cross-examine any opposing witness(es). Blank subpoenas may be obtained on the internet at the following address ***http://www.dmv.ca.gov/portal/dmv/detail/forms/formsds*** or provided to you by the hearing officer upon request prior to the hearing. You are responsible for service of your subpoena(s) and any witness fee required by law. ***After the hearing,*** the hearing officer shall make findings and render a decision.

OFFICER'S PRINTED NAME	BADGE/ID NUMBER	TELEPHONE NUMBER
MEZA	33295	(925) 818-0466
AGENCY	**AREA**	**COURT CODE (*IF UNKNOWN, COURT NAME*)**
CHP	390	01435

I ☐ **did** ☐ **did not** personally serve a copy of the Order of Suspension/Revocation to the driver.

Date 11 / 1 / 24 Signature of **Arresting** Officer **X**

ORDER SERVED BY ANOTHER OFFICER: If order was served on driver by **another Officer** have that officer complete this section.
I personally served a copy of the order to the driver on the date shown below:

Date	Serving Officer's *Printed* Name	Badge/ID Number	Signature Of Serving Officer
/ /			X

HEARING ISSUES

Chemical test results of 0.01% or more BAC while on DUI probation; 0.04% or more BAC in a commercial motor vehicle; or 0.08% or more BAC.

- Did the peace officer have reasonable cause to believe you were driving a motor vehicle in violation of CVC §§23152, 23153, or 23154?
- Were you lawfully detained while on DUI probation or lawfully arrested?
- Were you driving a motor vehicle when you had: **0.01% BAC** or more by weight of alcohol while on DUI probation; **0.04% BAC** or more by weight of alcohol while driving a commercial vehicle; or **0.08% BAC** or more by weight of alcohol?

Refusal to submit to or failure to complete a chemical test.

- Did the peace officer have reasonable cause to believe you were driving a motor vehicle in violation of CVC §§23152, 23153, or 23154?
- Were you lawfully detained while on DUI probation, or lawfully arrested?
- Were you told that your driving privilege would be suspended, or revoked for one, two, or three years if you refused to submit to, or failed to complete a chemical test?
- Did you refuse or fail to complete a chemical test, or PAS test (DUI Probation), after being requested to do so by a peace officer?

APPEAL RIGHTS

Following the hearing decision, you may request a department review in writing within 15 days from the date on the bottom of the notice telling you the results of your hearing. The fee for the department review is $120. You may also appeal a DMV decision by filing a writ of mandamus at the superior court in your county of residence within 30 days from the date on the bottom of the notice telling you the results of your hearing.

PENALTIES

Chemical test results of 0.01% or more BAC while on DUI probation; 0.04% or more BAC in a commercial motor vehicle; or 0.08% or more BAC. (CVC §§13353.2 and 13353.3)

- **First Offense** of driving with a BAC of 0.08% or more **or** 0.04% or more BAC in a commercial motor vehicle will result in a **4-month suspension**, or a **1-year suspension** if 0.01% or more BAC while on DUI probation.
- **Second or Subsequent Offense**, within 10 years of a separate violation of driving under the influence, including such a charge reduced to reckless driving, or vehicular manslaughter, or violation of CVC §23140, which resulted in a conviction, or separate administrative determination that you were driving with a BAC of 0.01% or more while on DUI probation, or a BAC of 0.08% or more **or** a BAC of 0.04% or more in a commercial motor vehicle at any age, or you refused a test, will result in a 1-year suspension.

Refusal to submit to or failure to complete a chemical test or a preliminary alcohol screening. (CVC §§13353 and 13353.1)

- **First Offense** will result in a **1-year suspension, or a 2-year revocation if on DUI probation**.
- **Second Offense**, within 10 years of a separate violation of driving under the influence, including such a charge reduced to reckless driving, or vehicular manslaughter, or a violation of CVC §23140, which resulted in a conviction, or separate administrative determination that you were driving with a BAC of 0.01% or more while on DUI probation, or a BAC of 0.08% or more **or** a BAC of 0.04% or more in a commercial vehicle at any age, or you refused a test, will result in a **2-year revocation, or a 3-year revocation while on DUI probation**.
- **Three or More Offenses** within 10 years of any combination of the above violations, convictions or separate administrative determinations will result in a **3-year revocation**.

ADDITIONAL INFORMATION

An administrative review will automatically be conducted. You will be notified in writing only if the suspension or revocation is set aside. Before the suspension or revocation can be ended and a driver license issued or returned to you, a $125 reissue fee must be paid to DMV (CVC §14905), and you must file proof of financial responsibility by a California Insurance Proof Certificate (SR 22/1P), $35,000 cash deposit, or surety bond, or self insurer certificate (CVC §16430). You must maintain proof of financial responsibility for three years. If you drive while your driving privilege is suspended or revoked, you may be arrested and, if convicted, jailed and/or fined and your vehicle can be impounded or sold.

THE ADMINISTRATIVE PER SE SUSPENSION/REVOCATION ACTION IS INDEPENDENT OF ANY COURT SANCTIONS.

continued on next page

EXHIBIT 5

CHP Arrest-Investigation Report

Incident Date: November 1, 2024

Agency Report No. RJ68845

Prepared by: Officer Santiago Meza-Gonzalez (Badge #023295)

Alameda County California Highway Patrol, Dublin Area

Subject: Brendan Ngehsi Newanforbi

Charges Recommended: Veh. Code §§ 23152(a), 23152(b), 23578

No accusatory pleading filed by Alameda County District Attorney

STATE OF CALIFORNIA
DEPARTMENT OF CALIFORNIA HIGHWAY PATROL

DRIVING UNDER THE INFLUENCE ARREST – INVESTIGATION REPORT

CHP 202 (Rev. 2-24) OPI 066

☒ Misdemeanor ☐ Felony ☐ Domestic Violence (Refer to HPM 100.69)

COURT	FILE NUMBER	EVIDENCE/PROPERTY
East County Hall of Justice	202400898	☐ YES ☒ NO

AREA	BEAT	CRASH REPORT NUMBER
390	052	N/A

E-

DATE/TIME OF ARREST/REPORT	DATE/TIME OF INCIDENT ☐ SAME	LOCATION OF ARREST/INCIDENT	WMVARS/MVARS
11/01/2024 0112	11/01/2024 0055	I-580 eastbound, west of Isabel Avenue	WMVARS ☒ YES ☐ NO

CAD NUMBER ☐ NONE	CITATION NUMBER	OFFENSE(S) CHARGED OR INVESTIGATED	JUS 8715 REQUIRED
241101GG0064	RJ68845	23152(a) VC, 23152(b) VC	☒ YES ☐ NO NUMBER:

LAST NAME, FIRST NAME, AND MIDDLE INITIAL: Newanforbi, Brendan, Ngehsi

SUBJECT NO 1 OF 1

NAME (last, first, middle)	RESIDENCE ADDRESS
Newanforbi, Brendan, Ngehsi	1455 Cat Tail Drive Stockton CA, 95204

AKA	HOME PHONE	MAILING ADDRESS
Not asked	Not asked	☒ SAME

RACE	ETHNICITY	SEX	BIRTHDATE	DISPATCH NOTIFIED
Black or African American	Not Hispanic or Latino	Male	09/16/1996	☒ YES ☐ NO TIME: 0326

DRIVER LICENSE NUMBER	STATE	DDL STATUS	HAIR	EYES	HEIGHT	WEIGHT	PLACE OF BIRTH (city, state, country)
F7953179	CA	Valid	BLK	BRN	508	225	Camaroon

EMPLOYER	BUSINESS PHONE	BUSINESS ADDRESS	MISC. (SSN, INS #, ETC.)
Self employed	Not asked	Not asked	Not asked ID: A13903

BOOKING, CII, FBI, ETC., NUMBER(S)	WHERE BOOKED/CONFINED	DATE/TIME	FINGERPRINTED
CAR913358	Santa Rita Jail	11/01/2024 0325	☒ YES ☐ NO

NOTIFICATION (*Who, How, When*), EXPLAIN IN NARRATIVE — NOTIFIED BY

☐ JUVENILE ☐ FOREIGN NATIONAL ☐ IMMUNITY CLAIM

VEHICLE

LICENSE	STATE	REG. YEAR	VIN/EN NUMBER	VEHICLE WAS	STORAGE AUTHORITY
9EAX768	CA	2025	7SAYGDEE3PF638736	☒ STORED ☐ PARKED ☐ RELEASED ☐ RECOVERED ☐ IMPOUNDED	22651(h)(1) VC

VEH YEAR	MAKE	MODEL	COLOR	BODY TYPE	LOCATION OF VEHICLE/RELEASED TO/ADDRESS/TELEPHONE NUMBER
2023	Tesla	Model Y	Gray	SUV	United Towing - (925) 888-8880

NAME OF REGISTERED OWNER ☐ SAME AS SUBJECT	ADDRESS ☐ SAME AS SUBJECT
PV Holding Corp.	5721 W. 96th Street Los Angeles CA, 90045

NAME OF LEGAL OWNER ☐ SAME AS R/O	ADDRESS	LOCATION OF KEYS
The bank of New York Mellow Trust Company	26933 Northwestern Hwy Southfield MI, 48033	With tow

WITNESS/PASSENGER/VICTIM

BIRTHDATE	SEX	NAME	ADDRESS/AGENCY	PHONE
	M	☒ WITNESS ☐ PASSENGER ☐ VICTIM Officer Melano ID 023054	4999 Gleason Drive Dublin CA, 94568	RES: N/A BUS: (925) 828-0466
		☐ WITNESS ☐ PASSENGER ☐ VICTIM		RES: BUS:
		☐ WITNESS ☐ PASSENGER ☐ VICTIM		RES: BUS:
		☐ WITNESS ☐ PASSENGER ☐ VICTIM		RES: BUS:

ADMONITION OF RIGHTS

1. YOU HAVE THE RIGHT TO REMAIN SILENT.
2. ANYTHING YOU SAY CAN AND WILL BE USED AGAINST YOU IN A COURT OF LAW.
3. YOU HAVE THE RIGHT TO TALK WITH AN ATTORNEY AND TO HAVE AN ATTORNEY PRESENT BEFORE AND DURING QUESTIONING.
4. IF YOU CANNOT AFFORD AN ATTORNEY, ONE WILL BE APPOINTED FREE OF CHARGE TO REPRESENT YOU BEFORE AND DURING QUESTIONING, IF YOU DESIRE.

THE ABOVE STATEMENT WAS READ TO THE ARRESTEE BY:

☒ NOT ADVISED ☐ ARRESTING OFFICER ☐ OR: ID: TIME:

DO YOU UNDERSTAND EACH OF THESE RIGHTS I HAVE EXPLAINED TO YOU?	HAVING THESE RIGHTS IN MIND, DO YOU WISH TO TALK TO US NOW?	WAIVER STATEMENT
☐ YES ☐ NO	☐ YES ☐ NO	

MISDEMEANOR INCARCERATION (To be completed upon physical arrest for any misdemeanor, pursuant to Section 853.6 of the Penal Code.)
As determined by the arresting officer, the person arrested:

1. ☐ was so intoxicated as to be a danger to themself or others.
2. ☐ required medical examination or medical care or was otherwise unable to care for their own safety.
3. ☒ was arrested under one or more of the circumstances listed in Sections 40302 and 40303 of the California Vehicle Code (Note 5 and 8 if also applicable).
4. ☐ had one or more outstanding arrest warrants issued.
5. ☐ could not provide satisfactory evidence of personal identification.
6. ☒ if released immediately, would jeopardize the prosecution of the offense or offenses for which arrested or the prosecution of any other offenses.
7. ☒ would be reasonably likely to continue the offense or offenses, or the safety of persons or property would be imminently endangered if immediately released.
8. ☐ demanded to be taken before a magistrate or refused to sign the citation.
9. ☐ would not appear at the time and place specified in the notice.
10. ☐ Other:

ARRESTING/INVESTIGATING OFFICER (*Print name/rank*)	ID NUMBER	REVIEWED BY (*Print name/rank*)	ID NUMBER	DATE
Meza / Officer	023295	SGT. DEAL	17747	11/5/24

Newanforbi, Brendan, Ngehsi | **RJ68845**

* Asked prior to FSTs

INVESTIGATION INTERVIEW

DO YOU KNOW OF ANYTHING MECHANICALLY WRONG WITH YOUR VEHICLE ? DESCRIBE. ☐ YES ☒ NO			ARE YOU SICK OR INJURED? DESCRIBE. ☒ YES ☐ NO: Pre-Diabetic		
ARE YOU DIABETIC OR EPILEPTIC? ☒ YES ☐ NO	DO YOU TAKE INSULIN? *(Pills/Injection)* ☐ YES ☒ NO		DO YOU HAVE ANY PHYSICAL IMPAIRMENTS? DESCRIBE. *(Feet, Legs, Ankles, or Hips)* ☐ YES ☒ NO		
WHEN DID YOU LAST SLEEP? Right now	HOW LONG? 7 Minutes	WHEN DID YOU LAST EAT? 11:30 PM	DESCRIBE: Hot dog		
WERE YOU DRIVING THE VEHICLE? ☒ YES ☐ NO ☐ N/A	IF NO, WHO?		WHERE DID YOU START DRIVING? Oakland	WHERE WERE YOU GOING? Stockton	
WHERE WERE YOU STOPPED? Livermore	WHAT HAVE YOU BEEN DRINKING? Nothing		HOW MUCH? Not asked	TIME STARTED? Not asked	TIME STOPPED? Not asked
LOCATION WHERE YOU WERE DRINKING? NAME/ADDRESS: Not asked			DO YOU FEEL THE EFFECTS OF THE DRINKS? DESCRIBE. ☐ YES ☐ NO: Not asked		
DID YOU BUMP YOUR HEAD? ☐ YES ☒ NO ☐ N/A	HAVE YOU BEEN DRINKING SINCE THE ACCIDENT? ☐ YES ☐ NO ☒ N/A		IF YES, WHAT?		HOW MUCH?
ARE YOU UNDER CARE OF A DOCTOR OR DENTIST? ☐ YES ☒ NO	IF YES, NAME/ADDRESS				RECENT SURGERY PERFORMED? ☐ YES ☒ NO *(Explain In Narrative)*
HAVE YOU TAKEN ANY MEDICINE OR DRUGS? ☐ YES ☒ NO	IF YES, WHAT?		HOW MUCH?	TIME OF LAST DOSAGE?	

DO YOU FEEL THE EFFECTS OF THE MEDICINE/DRUGS? DESCRIBE. ☐ YES ☒ NO

OBJECTIVE SIGNS/APPEARANCE/FIELD SOBRIETY TEST LOCATION

BREATH ODOR OF ALCOHOLIC BEVERAGE PRESENT:	GLASSES/LENSES	EYES (appearance)	DEMEANOR	SPEECH
Strong ☒ YES ☐ NO	☐ YES ☒ NO	Red and watery	Compliant	Slurred

CLOTHING WORN: CONDITION AND DESCRIPTION

Worn condition: Black shirt, green pants, and black slides

DESCRIBE TEST LOCATION, SURFACE, WEATHER, AND LIGHTING

Dirt shoulder: Clear, cool, and dry with patrol vehicle lights and flashlight

PRELIMINARY ALCOHOL SCREEN INFORMATION

P.A.S. Admonition: I am requesting that you take a preliminary alcohol screening test to further assist me in determining whether you are under the influence of alcohol. You may refuse to take this test; however, this is not an implied consent test and, if arrested, you will be required to give a sample of your blood, breath, or urine for the purpose of determining the actual alcoholic and drug content of your blood.

THE SUBJECT WAS ADVISED OF THE ABOVE STATEMENT BY:

☐ NOT ADVISED ☒ ARRESTING OFFICER ☐ OR ID: TIME: 0111

PAS SERIAL NUMBER	TEMPERATURE	ZEROED	RESULTS NO. 1	TIME 1	RESULTS NO. 2	TIME 2	RESULTS NO. 3 *(If needed)*	TIME 3
		☐ YES ☐ NO	☒ Refused					

LOCATION OF TEST	☐ At scene	BREATH SAMPLE	OFFICER ADMINISTERING PAS TEST	ID NUMBER	AREA
		☐ Automatic ☐ Manual	☐ ARRESTING OFFICER ☐ OR		

CHEMICAL TEST INFORMATION

☒ Implied Consent Admonishment, Section 23612 CVC
☒ Refused Test(s) (Complete DS 367)

DRUG ADMONISHMENT ☒ N/A ☐ Yes ☐ Refused (Complete DS 367)

ATTACHMENTS ☐ CHP 202 DRE ☐ OTHER

TYPE OF TEST	TIME	ID OF SAMPLE(S)	RESULTS, IF AVAILABLE	DISPOSITION OF SAMPLE(S)
1 ☐ Breath				
2 ☒ Blood	0238	RJ68845	Pending	CHP Dublin Area Blood Evidence Locker
3 ☐ Urine				

TEST GIVEN	LOCATION WHERE TEST WAS CONDUCTED	NAME AND TITLE OF PERSON GIVING TEST OR TAKING SAMPLE
1		☐ ARRESTING OFFICER ☐ OR
2	CHP Dublin Area Office	☐ ARRESTING OFFICER ☒ OR Phlebotomist Aziza Ghaleb
3		☐ ARRESTING OFFICER ☐ OR

CHEMICAL TEST ADVISEMENT

A. The breath testing equipment does NOT retain any breath sample for later analysis by you or anyone else.
B. If you want a sample retained, you may provide a blood or urine sample that will be retained at no cost to you. If you do so, the blood or urine sample may be tested for alcoholic or drug content by either party in a criminal prosecution.
C. Do you wish to provide an additional sample? ☐ YES ☐ NO ☒ N/A

WATSON ADVISEMENT

You are hereby advised that being under the influence of alcohol or drugs, or both, impairs your ability to safely operate a motor vehicle. Therefore, it is extremely dangerous to human life to drive while under the influence of alcohol or drugs, or both. If you continue to drive while under the influence of alcohol or drugs, or both, and, as a result of that driving, someone is killed, you can be charged with murder.

DO YOU UNDERSTAND ☒ YES ☐ NO _____ READ VERBATIM: ☒ YES ☐ NO ☐ DID NOT ADVISE (Explain in narrative)

☒ ARRESTING OFFICER ☐ OR _____ ID: _____ ☐ N/A

ARREST – INVESTIGATION REPORT NARRATIVE (CONTINUED)

FIELD SOBRIETY TESTS:

*All FSTs were explained and demonstrated in English by myself. Newanforbi stated he understood each test prior to performing each test. Newanforbi was asked and answered a series of FST questions prior to performing the FSTs. Notes were taken on 3x5 notepad, transferred to the report, and thrown out upon completion of the report. All times throughout this report were taken by my Iphone, unless otherwise stated.

Horizontal Gaze Nystagmus: Newanforbi displayed the following in both his eyes: Equal pupils, equal tracking, lack of smooth pursuit, distinct and sustained nystagmus at maximum deviation, and the onset of nystagmus prior to 45 degrees. Newanforbi also displayed lack of convergence.

Modified Romberg Balance: Newanforbi estimated the passage of 30 seconds to be an actual 43 seconds. Newanforbi displayed eyelid flutters.

One Leg Stand: Newanforbi chose not to perform this test and related it was difficult.

Walk and Turn: Newanforbi chose not to perform this test and related it was difficult.

Preliminary Alcohol Screening Device (PAS): I advised Newanforbi of the PAS admonishment and he refused to take the test.

FIRST OBSERVATIONS:

On 11/01/2024 at approximately 0055 hours, I was on duty, in full tan California Highway Patrol (CHP) uniform, driving a fully marked CHP patrol vehicle (1633363). My partner, Officer Melano ID 023054, was seated in the right front passenger of my patrol vehicle, also in full tan CHP uniform. We were traveling eastbound on I-580, just west of Isabel Avenue, when we came upon a Gray Tesla Model Y (S/V) on the right shoulder of I-580, just west of Isabel Avenue. I proceeded to park my patrol vehicle right behind the Tesla on the right shoulder to make a welfare check on the Tesla. I conducted a passenger side approach of the Tesla and observed a black male adult seated in the driver seat of the Tesla. The subject was asleep, and I noticed the subject was wearing an orange 21 + wrist band on his right wrist.

OBSERVATIONS UPON CONTACT:

I knocked on the right front passenger side window of the Tesla and the subject woke up. The subject seemed very confused and disoriented. I contacted the subject through the open right passenger side door and I could smell the distinct odor of an alcoholic beverage emitting from within the vehicle. I asked the subject if he was okay, and he related yes. The subject related he was in a parking lot, and I proceeded to informed him he was not in a parking lot, and he was on the side of the freeway. I asked the subject how long he had been parked on the side of the freeway and he related approximately 7 minutes. I asked him if he was alone, and he related yes. I asked him if he drove to that location and he related yes, from a party in Oakland. I asked the subject if he had consumed any alcoholic beverages, and he related no. I directed the male to exit the Tesla and walk to the right front of my patrol vehicle where I conducted a DUI evaluation. I asked the male if he had consumed any alcoholic beverages since stopping at that location and he related no. I asked the male if he had a driver license, and he gave me his California Driver License. I identified the male as Brendan Ngehsi Newanforbi D.O.B 09/16/1996 by his California Driver License ID F7953179. I asked Newanforbi a series of field sobriety test questions and while speaking with Newanforbi, I smelled the strong distinct odor of an alcoholic beverage coming from Newanforbi's breath and person. I explained and demonstrated a series of Field Sobriety Tests to Newanforbi, which he did not perform as explained and demonstrated.

ARREST:

Based on the following, I formed the opinion that Newanforbi drove to this location while under the influence of alcohol, a violation of California Vehicle Code 23152(a) per 40300.5 VC:

1. Newanforbi displayed objective signs and symptoms of intoxication.
2. Newanforbi stated that he had driven the vehicle to this location.
3. The driver's seat was adjusted to that of a person of Newanforbi's stature.
4. Newanforbi's answers to the Pre-FST questions.
5. Newanforbi's poor performance on the FST's.
6. Newanforbi related he did not have any alcoholic beverages since he stopped on the shoulder.

ARREST – INVESTIGATION REPORT NARRATIVE (CONTINUED)

ARREST (Continued):

At 0112 hours, I placed Newanforbi under arrest for a violation of California Vehicle Code section 23152 (a), driving while under the influence of alcohol, per 40300.5 VC.

I placed Newanforbi in handcuffs, they were then adjusted to proper fit and double locked. Newanforbi was then placed in the right rear passenger seat of my patrol vehicle. During this investigation a Department of Motor Vehicles (DMV) driving history for Newanforbi was requested through the GGCC. The GGCC advised his license status was valid and was on parole for 289(a)(1) PC. I advised Mr. Newanforbi of Implied Consent by reading the back of the DMV DS 367 page 1 verbatim (excluding paragraph 3 and 6). I gave Newanforbi the choice of submitting to a chemical breath test, blood test, or to refuse the tests. I advised Newanforbi there were additional administrative consequences from the DMV for refusing the chemical tests. Newanforbi chose to refuse any chemical testing. Newanforbi was then transported to the CHP Dublin Area Office, where I wrote an affidavit for Newanforbi's blood. Judge A. Sekany approved the affidavit at approximately 0234 hours (WAR913372). At approximately 0238 hours, I received two vials of blood from Newanforbi's right arm by phlebotomist Aziza Ghaleb. The blood sample was sealed and secured in the CHP Dublin Area Blood Evidence locker for analysis by the Department of Justice. Newanforbi was then transported to Santa Rita jail, where he was booked at approximately 0325 hours for 23152(a) VC.

RECOMMENDATIONS:

I recommend that a copy of this report be forwarded to the Alameda County District Attorney's office for the review of the following charges against Brendan Ngehsi Newanforbi:

- 23152(a) VC - DUI Alcohol
- 23152(b) VC - .08% BAC or above (Pending Results)

Upon successful prosecution of the above charges, I recommend the following enhancements be charged against Newanforbi:

- 23578 VC - Chemical Test Refusal

EXHIBIT 6

Notice of Response to Request for Discovery

— Personal Statement

Submitted: December 9, 2024

APS Case No. 34739340

Submitted by: Brendan Ngehsi Newanforbi, Respondent

Submitted to: California DMV, Driver Safety Branch

Contents: Five-page factual and legal statement with cited authority

Authorities cited include: Terry v. Ohio; Mercer v. DMV;

People v. Sanders; Pen. Code §§ 849(b)(1), 849(c), 849.5, 851.6(a)

DEPARTMENT OF MOTOR VEHICLES
LEGAL AFFAIRS DIVISION
Driver Safety Branch
4700 Broadway, 2nd Floor
Sacramento, California 95820
Email: ladsacramentodso@dmv.ca.gov
Telephone: (833) 543-7703 FAX: 916-227-2901

NOTICE OF RESPONSE TO REQUEST FOR DISCOVERY
PERSONAL STATEMENT

DSMS234
BRENDAN NGEHSI NGWANFORBI
1455 CAT TAIL DR
Stockton, CA 95204

DRIVER LICENSE NUMBER
F7953179

STATE OF CALIFORNIA
DEPARTMENT OF MOTOR VEHICLES

In the Matter of:	}	Driver License No.:F7953179
	}	Bk. or Arrest No.:RJ68845
BRENDAN NGWANFORBI	}	
	}	NOTICE OF RESPONSE TO REQUEST FOR DISCOVERY
	}	(Title 13, Division 1, Chapter 1, Article 2.4, §115.05
	}	of the California Code of Regulations [CCR])
Respondent	}	(§11507.6 Government Code)

STATEMENT OF FACTS AND DEFENSE

This document is provided in response to the Department of Motor Vehicles' request for discovery in the above-referenced matter. The following outlines the facts of the case, relevant legal challenges, and supporting case law demonstrating why the suspension of my driving privileges is unwarranted.

1. Welfare Check: Improper Escalation Without Probable Cause

On November 1, 2024, at approximately 12:30 a.m., I was safely parked on the shoulder of the freeway. My vehicle was off, the key not in the ignition, and I was asleep in the driver's seat. Officer Santiago Meza-Gonzalez approached my vehicle as part of a welfare check, a legitimate community caretaking function. However, this welfare check was escalated into a DUI investigation without specific, articulable facts or probable cause.

Relevant Case Law:

1. **Terry v. Ohio (1968) 392 U.S. 1:**
   - Officers must rely on specific, articulable facts to justify escalating an encounter into an investigation of criminal activity.
2. **Florida v. Royer (1983) 460 U.S. 491:**
   - Law enforcement may not extend the scope of an encounter beyond its initial purpose without clear and specific justification.

Challenges:

- The officer claimed to detect an odor of alcohol from the passenger side of the vehicle, a distance that makes such a determination highly implausible.
- The escalation lacked objective evidence of impairment, relying instead on subjective observations that failed to meet the legal threshold for reasonable suspicion.

2. Context of the Holiday Enforcement Period

This incident occurred immediately after Halloween, during a period of heightened law enforcement targeting alcohol-related offenses. While public safety initiatives during holidays are understandable, systemic pressures during such times can lead to overly aggressive enforcement and unnecessary escalation.

Relevant Case Law:

1. **People v. Reyes (2011) 195 Cal.App.4th 946:**
   - Law enforcement actions influenced by quotas or systemic pressures risk undermining the fairness of those actions.
2. **Brown v. Texas (1979) 443 U.S. 47:**
   - Detentions based on generalized motivations rather than specific facts violate constitutional protections.

Challenges:

- The timing of this encounter raises legitimate concerns about whether the officer's actions were influenced by misplaced motivations or systemic pressures associated with heightened holiday enforcement campaigns.
- This context supports reasonable skepticism about the fairness and motivations behind the investigation.

3. Lack of Probable Cause for the DUI Investigation

The officer cited observations such as "red and watery eyes," "slurred speech," and an odor of alcohol. However, these subjective observations were not corroborated by any objective evidence of impairment, such as erratic driving or unsafe behavior.

Relevant Case Law:

1. **Mercer v. DMV (1991) 53 Cal.3d 753:**
   - DUI investigations must be based on objective evidence of volitional movement or impairment.
2. **People v. Torres (2009) 173 Cal.App.4th 977:**
   - Physical symptoms like red eyes or slurred speech, without corroborating evidence of driving or impairment, are insufficient to justify a DUI arrest.

Challenges:

- The officer failed to account for alternative explanations for these observations, such as the effects of being abruptly awakened from sleep.
- There was no evidence of unsafe driving or recent operation of the vehicle to substantiate the officer's claims.

4. Ancillary Findings Are Fruit of the Poisonous Tree

Any subsequent observations or evidence, such as alleged poor performance on Field Sobriety Tests (FSTs), were obtained following an improper escalation and are inadmissible under the **fruit of the poisonous tree doctrine**.

Relevant Case Law:

1. **Wong Sun v. United States (1963) 371 U.S. 471:**
   - Evidence obtained as a result of unlawful police conduct must be excluded as fruit of the poisonous tree.
2. **People v. Medina (1972) 6 Cal.3d 484:**
   - Findings derived from an unlawful search or detention cannot retroactively justify the initial actions.

Challenges:

- The officer conducted FSTs on an uneven dirt shoulder, a condition acknowledged by Officer Melano as unsuitable for balance-based tests.

- The decision to obtain a blood sample following the escalation stems from this flawed investigation, rendering the evidence inadmissible.

5. Reasonableness of My Refusal

My refusal to submit to chemical testing was not an act of willful defiance but a reasonable and lawful response to an investigation that lacked legitimacy.

Relevant Case Law:

1. **McDonnell v. DMV (1975) 45 Cal.App.3d 653:**

   - A refusal must be clear, unequivocal, and intentional. Misunderstanding or distrust of the officer's motives, particularly in confusing or disorienting circumstances, can affect the validity of a refusal.

Challenges:

- My decision not to comply was a reasoned response to a procedurally improper investigation that failed to meet the legal threshold for probable cause.

6. Absence of Charges Highlights Weakness of the Case

Despite the officer's detailed report, no charges were filed against me, which underscores the insufficiency of the evidence and calls into question the legitimacy of the investigation.

Relevant Case Law:

1. **Brown v. Illinois (1975) 422 U.S. 590:**

   - Delays or failures in filing charges often indicate weaknesses in the evidence and undermine the validity of law enforcement actions.

Challenges:

- The prosecution's decision not to file charges demonstrates that the officer's claims and evidence were insufficient to meet even the minimal threshold for criminal proceedings.

Conclusion:

The escalation of this welfare check into a DUI investigation was procedurally improper, lacked probable cause, and resulted in actions that violated fundamental rights. The findings that followed

are inadmissible under established legal principles, and the absence of charges highlights the insufficiency of the evidence. My refusal to submit to chemical testing was a reasonable and lawful response to an unjustified and procedurally flawed investigation. Based on these facts and the supporting case law, the suspension of my license is unwarranted.

EXHIBIT 7

DMV Notice of Hearing Appointment

Issued: December 4, 2024

Form DS 2304 (Rev. 05/2023)

APS Case No. 34739340

Issued by: C. Winston, Sacramento Driver Safety Office

4700 Broadway, 2nd Floor, Sacramento, CA 95820

Hearing Date: January 24, 2025, 9:00 a.m. — Microsoft Teams

(Meeting ID 241846391884; Conference ID 159660245)

Presiding Hearing Officer: D. Candelaria

DEPARTMENT OF MOTOR VEHICLES
LEGAL AFFAIRS DIVISION
Driver Safety Branch
4700 Broadway, 2nd Floor
Sacramento, California 95820
Email: ladsacramentodso@dmv.ca.gov
Telephone: (833) 543-7703 FAX: 916-227-2901

DSMS234
BRENDAN NGEHSI NGWANFORBI
1455 CAT TAIL DR
Stockton, CA 95204

DRIVER LICENSE NUMBER
F7953179

THE MATTER OF:	FINANCIAL RESPONSIBILITY FILE NUMBER	CLASS/ENDORSEMENT(S)
BRENDAN NGWANFORBI		A / DOUBLES/TRIPLES, TANK VEHICLE

The record(s) below is/are being provided as discovery in compliance with § 11507.6 of the Government Code.

Driving Record Printout
Notice of Hearing
Notice of Stay
Officer's Statement, DS 367 (DS 367M)
Arrest/Incident Report(s)

The following is a list of names and addresses of witnesses that may be called to testify on behalf of the Department of Motor Vehicles.

DATE	NAME OF AUTHORIZED DMV EMPLOYEE	SIGNATURE OF AUTHORIZED DMV EMPLOYEE
December 4, 2024	C. Winston	**X** *C. Winston*

California Relay Telephone Service for the deaf or hard of hearing from TDD Phones: 1-800-735-2929; from Voice Phones: 1-800-735-2922

DEPARTMENT OF MOTOR VEHICLES
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Driver Safety Branch
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Sacramento, California 95820
Email: ladsacramentodso@dmv.ca.gov
Telephone: (833) 543-7703 FAX: 916-227-2901

NOTICE OF STAY

BRENDAN NGWANFORBI
1455 CAT TAIL DR
STOCKTON, California 95204

DRIVER LICENSE NUMBER
F7953179

The suspension taken against your driving privilege pursuant to §13353, of the Vehicle Code, effective December 1, 2024, is hereby stayed pending the outcome of your administrative hearing/department review.

You may continue to drive during the stay.

Your Remote hearing is scheduled on January 24, 2025, at 09:00 AM.

THIS ACTION IS INDEPENDENT OF ANY OTHER ACTION TAKEN BY THE COURT OR THIS DEPARTMENT

DATE	NAME OF AUTHORIZED DMV EMPLOYEE	SIGNATURE OF AUTHORIZED DMV EMPLOYEE
December 4, 2024	C. Winston	**X** *C. Winston*

DEPARTMENT OF MOTOR VEHICLES
LEGAL AFFAIRS DIVISION
Driver Safety Branch
4700 Broadway, 2nd Floor
Sacramento, California 95820
Email: ladsacramentodso@dmv.ca.gov
Telephone: (833) 543-7703 FAX: 916-227-2901

REQUEST FOR DISCOVERY

BRENDAN NGEHSI NGWANFORBI
1455 CAT TAIL DR
Stockton, CA 95204

DRIVER LICENSE NUMBER
F7953179

STATE OF CALIFORNIA
DEPARTMENT OF MOTOR VEHICLES

In the Matter of:	}	Driver License No.:F7953179
	}	Bk. or Arrest No.:RJ68845
BRENDAN NGWANFORBI	}	
	}	NOTICE OF REQUEST FOR DISCOVERY
	}	(Title 13, Division 1, Chapter 1, Article 2.4, §115.05
	}	of the California Code of Regulations [CCR])
Respondent	}	(§11507.6 Government Code)

The department requests you to provide any statements, writings, names and addresses of witnesses or other persons with personal knowledge of the events which led to the initial action, including, but not limited to, those intended to be called to testify at the hearing; or things which are relevant to this proceeding and would be admissible in evidence following the initiation of the action pursuant to Title 13, Division 1, Chapter 1, Article 2.4, §115.05 of the CCR and §11507.6 of the Government Code.

Please forward discovery to the address noted above.

DATE	NAME OF AUTHORIZED DMV EMPLOYEE	SIGNATURE OF AUTHORIZED DMV EMPLOYEE
December 4, 2024	C. Winston	**X** *C. Winston*

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NOTICE OF HEARING APPOINTMENT

BRENDAN NGEHSI NGWANFORBI
1455 CAT TAIL DR
Stockton, CA 95204

DRIVER LICENSE NUMBER
F7953179

The ☑ remote ☐ in-person contact which has been requested on this matter will take place as follows:

HEARING APPOINTMENT INFORMATION

DATE: **01/24/2025** TIME: **09:00 AM** HEARING OFFICER: **Diana Candelaria**

Login Instructions: **Via Microsoft Teams Remote Conference**

Join By Video:	Meeting ID:	**241846391884**	Meeting Passcode:	**sd3bj2Un**
Join By Phone:	Phone Number:	***67 1 279 666 3135**	Conference ID:	**159660245**

The above-referenced matter will be conducted remotely via Microsoft Teams. Instructions on how to participate in the hearing are attached to this notice. You may use your home telephone or computer. All contacts are recorded.

At the time and date set for the hearing you are responsible for joining the Teams meeting. The use of cellular or pay phones is not recommended for telephone contacts.

The hearing will be conducted by a Hearing Officer under the authority of the Vehicle Code (commencing with Section 14100) Chapter 3 of Division 6. The Hearing Officer will develop the facts and render a final decision on your matter but does not advocate on behalf of the Department. The Hearing Officer will ensure that all relevant evidence is considered. The Hearing Officer will examine and admit the DMV's official records, was well as the official records of the agency that arrested you.

At the hearing you may have an attorney or other representative represent you, at your own expense. You or your representative will be given the opportunity to present any evidence that you believe should be considered, to respond to any evidence against you, to conduct an examination of witnesses, and to present rebuttal evidence. Any evidence you wish to present should be sent to the Hearing Officer prior to the hearing.

You have a right to have the assistance of a sign or language interpreter. If you need assistance, immediately notify this office in order to make arrangements to have an interpreter available at your hearing.

DEPARTMENT OF MOTOR VEHICLES
LEGAL AFFAIRS DIVISION
Driver Safety Branch

CERTIFICATE OF SERVICE

☐ presented to the person named above a true copy of this document.
☑ emailed to the person named above a true copy of this document.
☐ deposited in the United States mail ☐ at the address shown above,
☐ at ,

a true copy of this document, in a sealed envelope, with postage paid, and addressed to the person as shown on this document. I am over the age of eighteen years, an employee of the Department of Motor Vehicles at the business address as shown above in the county where the office is located, and I am not a party to the cause herein mentioned.
I certify (or declare) under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

DATE	NAME OF AUTHORIZED DMV EMPLOYEE	SIGNATURE OF AUTHORIZED DMV EMPLOYEE
December 4, 2024	C. Winston	**X** *C. Winston*

California Relay Telephone Service for the deaf or hard of hearing from TDD Phones: 1-800-735-2929; from Voice Phones: 1-800-735-2922

Instructions for Participating in a Hearing Via Microsoft Teams

ln order to participate in the Hearing via Microsoft Teams you must ensure that your computer or other device supports the use of Microsoft Teams. Because using the computer's or tablet's internal microphone can create an unacceptable level of audio feedback, the Department recommends the use of an external headset or microphone, if possible.

You are responsible for ensuring that their devices and internet connection meet the minimum system and bandwidth requirements for using Microsoft Teams.

You can join the Hearing via Microsoft Teams and/or download Teams at https://www.microsoft.com/en-us/microsoft-teams/log-in

It is recommended, but not necessary, to install the Microsoft Teams application. More information can be found at https://learn.microsoft.com/en-us/microsoftteams/hardware-requirements-for-the-teams-app

You are responsible for connecting to and attending the Hearing using the information provided in this subpoena.

If you do not have access to a computer or other device capable of running Microsoft Teams, the party may connect to the Hearing via telephone using the phone number and phone passcode provided in this subpoena.

If you have questions regarding attending a hearing via Microsoft Teams or would like to request a meeting link by email, please contact:

4700 Broadway, 2nd Floor
Sacramento, California 95820

Email:ladsacramentodso@dmv.ca.gov
Telephone:(833) 543-7703

STATE OF CALIFORNIA
DMV
DEPARTMENT OF MOTOR VEHICLES
A Public Service Agency

NOTE FOR CUSTOMERS NEEDING INTERPRETER SERVICES

The Department of Motor Vehicles provides interpreters, including American Sign Language (ASL) interpreters, at no cost to the customer.

If you require an interpreter for your Driver Safety contact, please call the telephone number listed on the notice provided with this document, prior to your scheduled appointment date.

AVISO A LOS CLIENTES QUE NECESITEN SERVICIOS DE INTÉRPRETE

El Departamento de Vehículos Motorizados tiene a su disposición intérpretes, incluyendo intérpretes del lenguaje de señas americano (ASL), sin costo alguno para el cliente.

Si necesita un intérprete para comunicarse con un agente de seguridad vial, antes de ir a la cita programada, llame al número de teléfono que aparece en el aviso que se le proporcionó junto con este documento.

針對需要口譯服務之客戶的備註

機動車輛管理局為客戶免費提供各種語言的口譯服務，其中包括美國手語 (ASL)。

如果您需要安全駕駛聯繫方面的口譯服務，請在既定的預約日期之前，撥打隨附此文件提供之通知上所列的電話號碼。

Spanish

Chinese

LƯU Ý DÀNH CHO KHÁCH HÀNG CẦN DỊCH VỤ THÔNG DỊCH VIÊN

Cơ Quan Quản Lý Các Phương Tiện Cơ Giới cung cấp các dịch vụ thông dịch viên, bao gồm cả thông dịch viên Ngôn Ngữ Ký Hiệu Mỹ (ASL), miễn phí dành cho khách hàng.

Nếu quý vị yêu cầu thông dịch viên để liên lạc Lái Xe An Toàn, vui lòng gọi đến số điện thoại được ghi trong thông báo gửi kèm theo tài liệu này trước ngày hẹn được xếp lịch.

ԾԱՆՈԹԱԳՐՈՒԹՅՈՒՆ ԲԱՆԱՎՈՐ ԹԱՐԳՄԱՆՉԻ ԾԱՌԱՅՈՒԹՅՈՒՆՆԵՐԻ ԿԱՐԻՔ ՈՒՆԵՑՈՂ ՀԱՃԱԽՈՐԴՆԵՐԻ ՀԱՄԱՐ

Ավտոտրանսպորտի դեպարտամենտը (Department of Motor Vehicles) հաճախորդներին տրամադրում է բանավոր թարգմանիչների, այդ թվում՝ ամերիկյան ժեստերի լեզվի (ԱԺԼ) թարգմանիչների անվճար ծառայություններ:

Եթե ձեզ բանավոր թարգմանիչ է հարկավոր Վարորդի անվտանգության հարցերով հաղորդակցվելու համար, նախքան պայմանավորված տեսակցության օրը զանգահարեք այս փաստաթղթի հետ տրամադրված ծանուցագրում նշված հեռախոսահամարով:

ਦੁਭਾਸ਼ੀਏ ਦੀ ਲੋੜ ਵਾਲੇ ਗਾਹਕਾਂ ਲਈ ਸੂਚਨਾ

ਡਿਪਾਰਟਮੈਂਟ ਆਫ਼ ਮੋਟਰ ਵਹੀਕਲਜ਼ ਅਮਰੀਕੀ ਸੈਨਤ ਭਾਸ਼ਾ (ASL) ਦੇ ਦੁਭਾਸ਼ੀਏ ਸਮੇਤ, ਗਾਹਕ ਨੂੰ ਬਿਨਾਂ ਕਿਸੀ ਕੀਮਤ ਤੋਂ ਦੁਭਾਸ਼ੀਏ ਪ੍ਰਦਾਨ ਕਰਦਾ ਹੈ।

ਜੇ ਤੁਹਾਨੂੰ ਆਪਣੇ ਡਰਾਈਵਰ ਦੀ ਸੁਰੱਖਿਆ ਸੰਪਰਕ ਲਈ ਦੁਭਾਸ਼ੀਏ ਦੀ ਲੋੜ ਹੈ, ਤਾਂ ਕਿਰਪਾ ਕਰਕੇ ਆਪਣੀ ਤੈਅ ਅਪਾਇੰਟਮੈਂਟ ਤਾਰੀਖ ਤੋਂ ਪਹਿਲਾਂ ਇਸ ਦਸਤਾਵੇਜ਼ ਦੇ ਨਾਲ ਦਿੱਤੇ ਨੋਟਿਸ 'ਤੇ ਸੂਚੀਬੱਧ ਟੈਲੀਫੋਨ ਨੰਬਰ 'ਤੇ ਕਾਲ ਕਰੋ।

Vietnamese

Armenian

Punjabi

통역 서비스가 필요한 고객 참고 사항

차량국(Department of Motor Vehicles)에서는 미국 수화(ASL) 통역사를 포함하여 통역 서비스를 고객에게 무료로 제공합니다.

운전자 안전(Driver Safety) 사무실에 연락하기 위해 통역 서비스가 필요하시면, 예정된 예약 날짜 전에 본 문서와 함께 제공된 통지서에 나와 있는 전화번호 목록으로 연락하시기 바랍니다.

Korean

قابل توجه مشتریان نیازمند به خدمات مترجمی همزمان

اداره وسایل نقلیه موتوری بدون دریافت هیچ نوع هزینه‌ای، به ارائه‌ی خدمات مترجمی همزمان مراشا ن‌ابزشامل مترجمین همزمان می‌پردازد.(ASL)یاکیرماً

اگر به مترجم همزمان در زمینه‌ی ایمنی راننده نیاز دارید، لطفاً پیش از زمان قرار ملاقات از پیش‌تعیین شده، با شماره‌های درج شده در بخش توجه این سند تماس بگیرید.

Farsi

ПРИМЕЧАНИЕ ДЛЯ КЛИЕНТОВ, НУЖДАЮЩИХСЯ В УСЛУГАХ УСТНОГО ПЕРЕВОДЧИКА

Департамент штата по регистрации транспортных средств (Department of Motor Vehicles) предоставляет клиентам возможность бесплатно воспользоваться услугами переводчиков, в том числе с американского языка жестов (ASL).

Если для общения со специалистом по вопросам безопасности водителей Вам требуется переводчик, заблаговременно позвоните по номеру, который указан в уведомлении, отправленном вместе с этим документом, до назначенной даты приема.

Russian

उन ग्राहकों के लिए नोट जिन्हें दुभाषिया सेवाओं की जरूरत है

डिपार्टमेंट ऑफ मोटर व्हीकल्ज़, ग्राहक को मुफ्त अमेरिकी सांकेतिक भाषा (ASL) सहित, दुभाषिया सेवाएँ प्रदान करता है।

यदि आपको अपने ड्राइवर सुरक्षा संपर्क के लिए एक दुभाषिये की जरूरत है, तो कृपया अपनी निर्धारित अपाइंटमेंट तारीख से पहले, इस दस्तावेज़ के साथ दिये गये नोटिस पर सूचीबद्ध टेलीफोन नम्बर पर कॉल करें।

Hindi

PAALALA PARA SA MGA CUSTOMER NA NANGANGAILANGAN NG MGA SERBISYO NG INTERPRETER

Nagbibigay ang Department of Motor Vehicles ng mga serbisyo ng interpreter, kabilang ang mga interpreter ng American Sign Language (ASL), nang libre para sa customer.

Kung kailangan mo ng interpreter para sa iyong Driver Safety contact, pakitawagan ang numero ng teleponong nakalista sa abisong ibinigay kasama ng dokumentong ito, bago ang iyong nakaiskedyul na petsa ng appointment.

Tagalog

通訳サービスが必要なお客様へのお知らせ

自動車管理局（Department of Motor Vehicles）ではアメリカ手話（ASL）を含め、無料でお客様に通訳を手配いたします。

運転者の安全（Driver Safety）に関する連絡の際に通訳が必要な場合には、お客様のご予約日に先立ち、本書のお知らせに記載されている電話番号までお問い合わせください。

Japanese

EXHIBIT 8

California Commercial Driver's License No. F7953179

Issued to: Brendan Ngehsi Newanforbi

Address: 1455 Cat Tail Drive, Stockton, California 95204

License Class: Class A Commercial Driver's License

Endorsements: Doubles / Triples; Tank Vehicle

License suspended by void Decision of February 11, 2025

(APS Case No. 34739340)

DEPARTMENT OF MOTOR VEHICLES
LEGAL AFFAIRS DIVISION
Driver Safety Branch
4700 Broadway, 2nd Floor
Sacramento, California 95820
Email: ladsacramentodso@dmv.ca.gov
Telephone: (833) 543-7703 FAX: 916-227-2901

TEMPORARY LICENSE

DSMS234
BRENDAN NGWANFORBI
1455 CAT TAIL DR
STOCKTON, California 95204

DRIVER LICENSE NUMBER
F7953179

DS DISTRICT OFFICE ID	CLASS/ENDORSEMENT(S)	DRIVER LICENSE NUMBER
SAC	A / DOUBLES/TRIPLES, TANK	F7953179
ISSUED AT (DRIVER SAFETY DISTRICT OFFICE)	DATE	DATE OF BIRTH
Sacramento	December 4, 2024	September 16, 1996

NAME
BRENDAN NGWANFORBI

ADDRESS
1455 CAT TAIL DR

CITY, STATE, ZIP CODE
STOCKTON, California 95204

RESTRICTION(S):
☐ Corrective Lenses ☑ Restriction(s): CLASS A/B-LIMITED TO VEHICLE WITH AUTOMATIC TRANSMISSION, DISQUALIFIED FROM DRIVING COMMERCIALLY.

REASON FOR ISSUANCE:
PENDING APS HEARING

THIS TEMPORARY LICENSE IS VALID FROM December 1, 2024 THROUGH OUTCOME OF HEARING. THIS TEMPORARY LICENSE MUST BE SIGNED BY THE LICENSEE TO BE VALID.

SIGNATURE OF LICENSEE
X

THIS SECTION ONLY APPLIES TO A STAY/HEARING

The suspension taken against your driving privilege pursuant to §13353, of the Vehicle Code, effective December 1, 2024, is hereby stayed pending the outcome of your administrative hearing/department review. You may continue to drive during the stay. ***IF YOU DO NOT RECEIVE THE DECISION PRIOR TO THE EXPIRATION DATE SHOWN ON THIS TEMPORARY LICENSE, PLEASE CONTACT THE OFFICE AT THE ABOVE ADDRESS FOR AN EXTENSION OF THIS TEMPORARY LICENSE.***

Your Remote hearing is scheduled on January 24, 2025, at 09:00 AM.

You may receive a driver license by mail while the action is stayed pending the outcome of your hearing. Upon notification of the hearing decision, you may be required to surrender your driver license.

THIS ACTION IS INDEPENDENT OF ANY OTHER ACTION TAKEN BY THE COURT OR THIS DEPARTMENT

NAME OF AUTHORIZED DMV EMPLOYEE	SIGNATURE OF AUTHORIZED DMV EMPLOYEE
C. Winston	X *C. Winston*

California Relay Telephone Service for the deaf or hard of hearing from TDD Phones: 1-800-735-2929; from Voice Phones: 1-800-735-2922